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PARLIAMENTARY DEBATES

OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

FIRST MEETING, 2026

Wednesday, 18th February, 2026

*The House met at the Chamber,
Parliament House, at 2:24 p.m.*

[HON FIRST DEPUTY SPEAKER, MR
BERNARD AHIAFOR, IN THE CHAIR]

[PRAYERS]

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr First Deputy Speaker: Hon Members, let us turn to the item numbered 5, the *Votes and Proceedings* of Tuesday, 17th February, 2026 for correction.

Page 1...15.

[No correction was made to the Votes and Proceedings of Tuesday, 17th February, 2026]

Mr First Deputy Speaker: We have two *Official Reports*; *Official Report* of 10th February, 2026 and 11th February, 2026. Let us first correct the *Official Report* of 10th February, 2026. Hon Members, any corrections?

Yes, Mr Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, thank you for the opportunity. May I invite you to Column 26, the first

paragraph, line 2, the title given the Minister for Food and Agriculture there as “Dr” should be deleted.

Thank you.

Mr First Deputy Speaker: Why are you asking the title “Dr” to be deleted?

Mr Afriyie: Mr Speaker, with respect, the House recognises merit and I am not sure the Minister has informed the Clerks-at-the-Table that he has done his PhD.

Mr First Deputy Speaker: But you are not a Clerk-at-the-Table, so how will you know whether the Minister has informed them or not?

Mr Afriyie: Indeed, Mr Speaker, if you walk with me to the paragraph before, he has been described at some of the places as “Mr” and what I addressed earlier as “Dr”. So, for internal coherence—

Mr First Deputy Speaker: Table, be consistent. Any further corrections?

Hon Members, the *Official Report* of Tuesday, 10th February, 2026, as corrected, is hereby adopted as the true record of proceedings.

Now let us turn to the *Official Report* of 11th February, 2026.

Yes, Mr Frank Afriyie?

Mr Afriyie: Mr Speaker, just a harmless one; on column 11, the very last paragraph, I think the description offered

to the respected Member for Tolon there should be corrected. The use of the title “Deputy Minority Chief Whip” is rather the First Deputy Minority Whip.

Thank you.

Mr First Deputy Speaker: Table, take note and do the needful.

Is that my Friend that I caused a problem to? We would come back to that. Any further corrections?

Hon Members, the *Official Report* of Wednesday, 11th February, 2026, as corrected, is hereby adopted as the true record of proceedings.

Yes, Majority Leader, *A zipilgu maa ni bingma maa vel pam*, to wit, your hat and your *fugu* are very nice.

Mr Mahama Ayariga: Thank you very much, Mr Speaker.

Alhaji Habib Iddrisu: Mr Speaker, what language was that?

Mr First Deputy Speaker: It is your language—[Laughter]—Yes, Majority Leader, we have taken the *Votes and Proceedings* and the *Official Report*. Do we move to Urgent Questions?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, yes, the indication is that we would zoom straight into the Questions. So, the items numbered 6 and 7—

Mr First Deputy Speaker: Hon Members, following the Questions

scheduled for the Minister for Roads and Highways; he is dutifully seated in the House. May I ask him to take the designated seat, while I call on Mr Frank Afriyie, Member of Parliament for Afadjato South, to pose the Urgent Question.

Hon Member, you have the floor.

URGENT QUESTION

MINISTRY OF ROADS AND HIGHWAYS

The Outcome of Government’s Value-for-Money Audit and Status of Cocoa Roads in the Country

Mr Frank Afriyie (NDC — Afadjato South): I rise to ask the Minister for Roads and Highways what is the outcome of Government’s value-for-money audit ordered in 2017 and the current status of cocoa road projects in the country?

Thank you.

Mr First Deputy Speaker: Yes, Hon Minister?

Minister for Roads and Highways (Mr Kwame Govers Agbodza) (MP): Mr Speaker, the Cocoa Road Improvement Project (CRIP), was launched in 2014 to provide improved road access in cocoa growing communities to help farmers move their produce more easily and also to reduce smuggling, lower transport costs and connect rural communities to schools, health facilities and markets. The

programme covered feeders, trunk and urban roads with funding sources directly from the Ghana Cocoa Board.

Over time, there were significant challenges in the implementation of the programme, with the result that most of all projects under the programme from 2014 to 2015 and 2019 onwards had gone beyond their contracted deadlines with many contractors abandoning site and the deterioration of some of these uncompleted road projects.

Funding shortfalls at the Ghana Cocoa Board resulted in delayed payment, leading to mounting arrears. In light of the challenges encountered, the Government requested an audit review and restructuring of the Cocoa Road Project.

Cocoa Road project. An interim report was subsequently issued.

2:34 p.m.

The impact of the 2017 suspension

The suspension of the Cocoa Road project in 2017 resulted in significant negative consequences economically, socially, and for every farmer what the programme was intended to do was not achieved.

Mr Speaker, amongst the negative effects of the suspension of the programme include severe disruption to construction activities, deterioration of

road infrastructure, disruption of Cocoa value chain, and farmer livelihood.

Economic and social strains on communities

Loss of contractor confidence and higher future costs. This has translated into higher bid prices, tightening competitiveness, and greater fiscal costs in subsequent award rounds.

Conclusion

Given the challenges, Government has taken a strategic policy decision to cede responsibility for all ongoing Cocoa Road Project from Cocoa Board to the Ministry of Roads and Highways and their agencies, especially highways and feeder roads. Discussions are ongoing to conclude the process.

Mr Speaker, further to that, Government has directed that the relevant agencies take steps to review the entire Cocoa Road programme and present a report to government for action.

Thank you.

Mr First Deputy Speaker: Hon Member, any supplementary question?

Mr Afriyie: Mr Speaker, yes. I thank the Hon Minister for the answers. However, as many as 266 contracts were awarded within the period we are talking about, I would like to find out from the Minister how many of such roads were completed, if any.

Mr Agbodza: Mr Speaker, according to the record, the bulk of the Cocoa Road Projects were never completed, simply because many of them were at different stages of completion when the policy decision was made to suspend all Cocoa Road Projects for investigation. Unfortunately, by the time the investigation was concluded, many of those projects further deteriorated, leading to all the negative impact I listed below. So, I do not have the exact number of those which were completed. The majority of them were never completed fully, leading to the problem we have currently.

Mr First Deputy Speaker: Yes, Hon Member. Any supplementary question?

Mr Afriyie: Mr Speaker, just to thank the Minister and to seek clarity, to the extent that I am aware, it says that some of these roads have been —

Mr First Deputy Speaker: Ask supplementary question.

Mr Afriyie: Mr Speaker, with respect, yes, that is what I am developing. I would like to find out how many of those roads have been reprofiled under the “Big Push”.

Mr Agbodza: Mr Speaker, since the first phase for the “Big Push” is mainly focused on the trunk roads. Many of the trunk road projects which were part of the original Cocoa Road Project have been programmed. For instance, the section from Have to Hohoe, Hohoe through Jasikan, and then the one from

Bassa through Oti Damanko are all part of the Cocoa “Big Push” Project now, and contractors are on site for completion. I do not have all the full details for the other ones.

Mr Speaker, thank you.

Mr First Deputy Speaker: Yes, Hon Member, your last supplementary question, if any.

Mr Afriyie: Mr Speaker, I have none, except to thank the Minister and the Government for the spirit of continuity.

Mr First Deputy Speaker: Yes, Hon Richard Acheampong?

Mr Richard Acheampong: Mr Speaker, thank you very much for the opportunity. I would like to ask the Minister, Adabokrom to Nkrankwanta, which is 21 kilometres, Kwasare to Atankona, another 20 kilometres, were part of the Cocoa Roads which were abandoned by the previous administration. Earthworks were done, excavation and all that, but they abandoned the project, and all of that deteriorated —

Mr First Deputy Speaker: What is your question?

Mr Acheampong: So, the question is, do they have any programme to make sure that Adabokrom to Nkrankwanta is fixed, and Kwasare to Atakona is fixed?

Mr First Deputy Speaker: Hon Member, kindly ask a specific question.

Mr Acheampong: Mr Speaker, my question is simple. Those roads were part of the Cocoa Road contracts that were awarded, and they were abandoned.

Mr First Deputy Speaker: The question on the floor is to ask the Minister for Roads and Highways, what the outcome of Government's value for money audit ordered in 2017, and the current status of Cocoa projects in the country is?

Mr Acheampong: So, let me rephrase the question.

Mr First Deputy Speaker: If you are asking of a specific road, that should be a specific question for the Minister to prepare to come and answer.

Mr Acheampong: Mr Speaker, Adabokrom to Nkrankwanta's contract fits into the Cocoa Road projects. It was part of the abandoned projects. So, we need to get to know the status of it, and the programme for that road.

Mr First Deputy Speaker: Well, if you are asking of the status and the programme for that road, then Hon Minister, you may answer.

Mr Agbodza: Mr Speaker, indeed, as we are all aware, all the liabilities on the awarded projects have been transferred to the Ministry of Roads and Highways. As has been reported, in 2023 and 2024 alone, almost GHC23 billion worth of Cocoa Road Projects were awarded. What we are doing now is to gradually reprogram all those into one programme of road intervention or the other.

So, the road is mentioned as one of those that will be reprogrammed for completion.

Mr First Deputy Speaker: Yes. Any further questions? Yes, Hon Anabah?

Dr Thomas Winsum Anabah: Mr Speaker, I want to know how much Government spent so far in those abandoned road projects, and what was the cost of the audit for auditing the abandoned Cocoa Roads?

Mr Agbodza: Mr Speaker, I do not have the figure, but once upon a time, I was the one asking that question to the former Minister for Agriculture, Hon Afriyie Akoto and he never gave the answer. So, at the moment, I do not know how much it costs to do the audit.

But all I know is that the entire Cocoa Road Programme has been so badly handled that I consider that as one of the basis of the problems Cocoa Board is having right now. From 2017, if we award in 2023 alone, 2023/2024, GHC23 billion worth of Cocoa project, that is more than all the syndication they can even ever get in a year. It means Cocoa Board lost focus. They were not concentrating on Cocoa production. They were focused on procurement and that is why President John Dramani Mahama directed that no more Cocoa Board indulging in Cocoa Road, rather they should be focused on Cocoa production and marketing so that our farmers will get the best value for their labour.

Mr Speaker, thank you.

Mr First Deputy Speaker: Thank you. Hon Members, let us move to the Question numbered 550, standing in the name of Dr Grace Ayensu-Danquah, Member of Parliament for Essikadu-Ketan.

ORAL ANSWERS TO QUESTIONS

MINISTRY OF ROADS AND HIGHWAYS

Interventions to rehabilitate the Kojokrom to Nkroful Stretch

Dr Grace Ayensu-Danquah (Essikadu-Ketan): Mr Speaker, I beg to ask the Minister for Roads and Highways the immediate and long-term interventions being taken to rehabilitate the Kojokrom to Nkroful Junction stretch of the Accra – Elubo road.

Mr First Deputy Speaker: Yes, Hon Minister?

Sorry, I skipped question number 617. We will come back to that.

Mr Agbodza: Mr Speaker,

Background

The Kojokrom to Nkroful Junction Road is a strategic corridor along the National Route (N1) within the Western Region, that serves the Sekondi - Takoradi Metropolitan Assembly.

Current Programme

The road has been awarded under the contract titled “*Dualization of Cape Coast – Takoradi road (164 – 187.6km) - Lot 6*”.

The contract commenced on 1st December, 2025 for completion by 1st December, 2027. The Rehabilitation of the Kojokrom to Nkroful Junction stretch of the Accra – Elubo Road is part of the dualisation of the Cape Coast – Takoradi Road under the Big Push Initiative. The Contractor is currently on site engaging in initial works such as maintenance of deteriorated road sections, removal of temporary structures along the ‘Right of Way’ and earthworks.

The physical progress of works stands at 4 per cent.

2:44 p.m.

Mr First Deputy Speaker: Any supplementary questions?

Dr Ayensu-Danquah: Yes, Mr Speaker, I would like to ask if the Minister has any timelines.

Mr First Deputy Speaker: Hon Minister, the question is any timelines?

Mr Agbodza: Mr Speaker, in my Answer I said the projected completion date is 1st December, 2027, and we have every reason to believe that project will be completed by then.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Any further supplementary?

Hon Members, this is a constituency-specific Question. Let us come back to the Question numbered 617, which stands

in the name of Hon Mohammed Adamu Ramadan.

Mr Dumelo: Mr Speaker, I have the permission to ask on behalf of the MP for Adentan, Hon Adamu Ramadan, and it is to ask the Minister for Roads and Highways—

Mr First Deputy Speaker: No. Hon Member, do you have his authority or permission?

Mr Dumelo: Authority, Mr Speaker.

Mr First Deputy Speaker: Very well. The Standing Order makes reference to authority.

Status of Abandoned Road Projects

Mr John Setor Dumelo on behalf of Mr Mohammed Adamu Ramadan (NDC — Adentan): Mr Speaker, I beg to ask the Minister for Roads and Highways when the following roads will be completed in view of the fact that the contractors have left the sites: (i) Lotto Kiosk to Hotel Junction (ii) Roman Junction to New Legon.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Agbodza: Mr Speaker,

Background

- (i) Lotto Kiosk to Hotel Junction
- (ii) Roman Junction to New Legon

The Adenta municipality is located in the Greater Accra region.

Current Programme

The Lotto Kiosk to Hotel Junction and Roman Junction to New Legon roads is that the roads are being rehabilitated under the contract titled “Rehabilitation of Powerlands, SDA, Ntreh Avenue, and Commmandos Area Roads (3.9km)”.

The contract was awarded on 13th September, 2024. Works commenced on 14th October, 2024 scheduled for completion by 13th October, 2026. The Contractor has completed 6km of drainage works and 2.8km of roadways, rehabilitated to bituminous surfacing level. Physical progress to date is 48 per cent.

The contractor is currently not on site and efforts are being made to get the contractor back on site to complete outstanding works.

The Lotto Kiosk and New Legon Roads have both been scarified at the worst sections, with limited re-shaping to improve riding comfort in the interim, while reconstruction of roadside and outfall drains are constructed.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, any supplementary question?

Mr Dumelo: No, Mr Speaker.

Mr First Deputy Speaker: Now, let me give the floor to Hon Alhassan Umar, Member of Parliament for Zabzugu.

Re-award of Abandoned Bridge between Kuntumbiyili and Ogbunja

Mr Alhassan Umar (NDC — Zabzugu): Mr Speaker, I beg to ask the Minister for Roads and Highways when the abandoned bridge between Kuntumbiyili and Ogbunja will be re-awarded to a new contractor.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Agbodza: Mr Speaker,

Background

The proposed bridge is located on the Zabzugu – Kuntubiyili –Ogbunja-Sangba feeder road at chainage 13+100 in the Zabzugu District of the Northern Region. The road is an inter-district road linking the Zabzugu enclave to Tatale district.

Current Programme

The road has been awarded under the contract titled “Rehabilitation of Zabzugu–Kuntubiyili–Kukpalgu Junction–Sangba Feeder Roads” to be executed in three phases. Phase III of the contracts, spanning chainage 13+000 to 25+800, and within which the proposed bridge falls, has consequently been rescoped to accommodate the construction of the structure along the project road. The hydraulic designs and cost estimates for the proposed crossing have been completed for works to commence.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Member, any supplementary questions?

Mr Umar: No, Mr Speaker.

Mr First Deputy Speaker: Hon Members, this is also a constituency-specific Question. Let us move to the Question numbered 565 which stands in the name of Akwasi Konadu, Member of Parliament for Manhyia North.

Resumption of Work on Abandoned Road Projects in Manhyia North Constituency

Mr Akwasi Konadu (NPP — Manhyia North): I beg to ask the Minister for Roads and Highways when construction will resume on the (i) Buokrom junction – Abease road (ii) Dote inner town road (iii) Duase New Site Road.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Minister, you may answer, but we skipped Question numbered 634. We will come back to it.

Minister for Roads and Highways (Mr Kwame Govers Agbodza): Mr Speaker,

Background

(i) Buokrom junction – Abease road

(ii) Dote inner town road

Manhyia North, one of the constituencies in the Ashanti Region and located in the Manhyia North Sub-metro of the Kumasi Metropolitan Assembly.

Current Programme

The Department of Urban Roads (DUR) awarded the contract titled 'Rehabilitation of selected roads in Manhyia North (7.7km), Kumasi' to rehabilitate some roads including the 1.2km Buokrom Junction-Abaase Road within Manhyia North.

The project commenced on 15th November, 2024 for completion by 14th November, 2026.

The contractor has currently constructed a total of 1.59km of U drains within the Buokrom area and yet to commence works at Dote. The contractor vacated site but is currently back on site. Works are ongoing.

(iii) Duase New Site Road

Current Programme

Mr Speaker, with regard to Duase New site road, there is no programme on the Duase New site road.

Future Programme

Engineering studies and cost estimates for 6.8km of roads within Duase have been prepared for consideration subject to the availability of funds.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Member, any supplementary questions?

Mr Konadu: Yes, Mr Speaker. Let me first thank the Hon Minister. Indeed, construction works has begun on the Buokrom Junction-Abaase Road.

However, for Duase, he said there is no current programme on the road, although engineering works and cost estimates have been done. Looking at the current road programmes that we do have, all being put under the Big Push programme, that enclave forms part of the total Prempeh I International Airport area. And looking at how—

Mr First Deputy Speaker: Hon Member, your supplementary question?

Mr Konadu: Can the Duase Town Road be included under Prempeh I International Airport area looking at the proximity and the importance of that road to the Prempeh I International Airport.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Agbodza: Mr Speaker, Government takes comprehensive view at all the road network in Kumasi, especially in and around the airport. Efforts are being made to reconfigure the entire road network from the airport through Suame Interchange, all the way to link the abandoned roads that we find. So in about a month, the comprehensive study will be completed.

Some of the projects are ongoing, including resumption of work at the Suame Interchange, as I said in the past. The contractor was off-site partly because the loan agreement for which the interchange was supposed to be built did not come through. This House approved a loan of US\$750 million under the African Export-Import Bank (Afreximbank), and then allocated a certain amount to start the Ekye Amanfrom Bridge. But because the Suame Interchange project had already started, we stopped the bridge in Ekye Amanfrom and sent part of that proceed to Suame Interchange.

2:54 p.m.

Unfortunately, Mr Speaker, it was still not enough to complete the project.

The contractor's certificate of US\$23 million was also outstanding. The Minister for Finance has processed that and he is in the process of paying that. Once that is paid, the contractor will be back fully on site to complete the scope that is within the Big Push. And all these related roads are going to be considered in the second phase of the work we are doing currently.

Mr First Deputy Speaker: Any further supplementary?

Mr Konadu: No, Mr Speaker, I just want to thank the Hon Minister that we are counting on the one-month re-engineering that he ought to do so that we can do a follow-up and know when these roads can be resumed. Thank you.

Mr First Deputy Speaker: Thank you very much, Hon Member.

We move to the Question numbered 634, standing in the name of Hon Kofi Arko Nokoe.

Timeline for the Construction of Gwira Wiaso–Gwira Maham Bridge on River Ankobra

Mr Kofi Arko Nokoe (NDC — Evalue-Ajomoro-Gwira): Thank you, Mr Speaker. I rise to ask the Minister for Roads and Highways when the Gwira Wiaso – Gwira Maham bridge over the River Ankobra linking the Evalue and Nzema areas in the South to the Gwira and Wassa North will be constructed.

Mr Agbodza: Mr Speaker, thank you.

Background

The proposed bridge over Ankobra river links *Gwira* Wiaso – Gwira Maham in the Evalue and Nzema areas in the Nzema East Municipal and Wassa North district of the Western Region.

Current Programme

There is no programme on the proposed bridge.

Future Programme

Engineering studies for the proposed bridge over Ankobra river would be considered in the next bridge programme of the Ministry, upon the availability of funds.

Mr First Deputy Speaker: Yes, that is the Answer, any supplementary?

Mr Nokoe: Yes, Mr Speaker. I wish to ask the Minister for Roads and Highways if he could give my constituents assurance of considering this road in the future as they continue to watch these proceedings.

Mr First Deputy Speaker: Hon Minister, any assurance?

Mr Agobdza: Mr Speaker, we consider this bridge a very important bridge among many other programmes in the Western Region. Mr Speaker, it is not for anything that President Mahama directed that the outstanding bill of US\$78 million owed the contractor working from Takoradi to Agona Junction, which was the total sum of the certificates raised and unpaid before he took over, be paid. And for that reason, the contractor is back to site and will complete it and many other projects that are ongoing. This bridge forms part of a strategic bridge in the area my Colleague talked about and we are working tirelessly to make sure we make the necessary arrangement for the bridge project to start as soon as possible, Mr Speaker.

Mr First Deputy Speaker: Any further supplementary?

Mr Nokoe: Mr Speaker, I just want to thank the Minister for his refreshing words. Thank you.

Mr First Deputy Speaker: Thank you also. Since this is a constituency-specific question, let us move to the Question numbered 566, standing in the

name of Mr Ohene Kwame Frimpong, Member of Parliament for Asante Akyem North.

Immediate Plans for the Construction of Roads in the Asante Akyem North Municipality

Mr Ohene Kwame Frimpong (IND— Asante Akyem North): Thank you very much, Mr Speaker. I beg to ask the Minister for Roads and Highways the immediate plans to construct the following roads, which connects most farming communities within the Municipality: (i) Abrewapong Road (ii) Hwidiem to Yeji – Asenkyem (iii) Anenekrom to Nyiayeso (iv) Aninsua to Domeabra.

Thank you.

Mr Agbodza: Mr Speaker, all the roads mentioned by my Colleague are within the Asante Akyem North Municipality and the district capital being Agogo and it is a link to communities in the Eastern Region.

(i) Abrewapong Road

Background

The Abrewapong Road is an inter-district road that connects the Asante Akyem North Municipal capital, Agogo, to communities in the Eastern Region. It is a 15km engineered road in poor surface condition.

Current Programme

There is no programme on the road.

Future Programme

Engineering design studies and cost estimates will be carried out on the road for consideration upon the availability of funds.

(ii) Hwidiem to Yeji-Asenkyem Road**Background**

The Hwidiem–Yeji–Asenkyem Road is an 8km access road in the Asante Akyem North Municipality of the Ashanti Region. It is a partially engineered gravel road in poor surface condition.

Current Programme

There is no programme on the road.

Future Programme

Engineering design studies and cost estimates will be carried out on the road for consideration upon the availability of funds.

(iii) Ananekrom-Nhyiayeso road**Background**

The Ananekrom–Nhyiayeso Road is a 20km inter-district road located in the Asante Akyem North Municipality of the Ashanti Region. It is a partially engineered gravel road in poor surface condition.

Current Programme

There is no programme on the road.

Future Programme

Engineering design studies and cost estimates will be carried out on the road for consideration upon the availability of funds.

(iv) Aninsua-Domeabra road**Background**

The Aninsua–Domeabra road is an 8km engineered connector linking the Effiduase–Agogo road to the Agogo–Konongo road located in the Ashanti Region. It is a gravel road in poor surface condition.

Current Programme

There is no programme on the road.

Future Programme

Engineering design studies and cost estimates will be carried out on the road for consideration upon the availability of funds.

Mr First Deputy Speaker: Yes, any supplementary questions?

Mr Frimpong: No other supplementary questions, Mr Speaker. Thank you very much.

Mr First Deputy Speaker: Thank you. This is also a constituency-specific question. We move to the Question numbered 579, standing in the name of Mr Bright Asamoah Brefo, member for Bibiani/ Anhwiaso / Bekwai.

Plans for the Construction of the 3.5km Bibiani Bypass from Mess Junction to Mortar Junction

Mr Bright Asamoah Brefo (NDC — Bibiani-Anhwiaso-Bekwai): Thank you, Mr Speaker. I beg to ask the Minister for Roads and Highways the plans the Ministry has for the construction of the 3.5KM Bibiani bypass which starts from Mess Junction and ends at Mortar Junction.

Mr Agbodza: Thank you, Mr Speaker.

Background

Bibiani is the capital of the Bibiani-Anhwiaso-Bekwai Municipal Assembly located in the Western North Region of Ghana.

Current Programme

There is no programme on the road

Future Programme

Engineering studies and cost estimates have been prepared to construct a bypass to reduce congestion on the main road for consideration subject to the availability of funds.

Mr First Deputy Speaker: Any supplementary questions?

Mr Brefo: Mr Speaker, this bypass is needed for the sole reason of easing traffic congestion.

Mr First Deputy Speaker: Hon Member, a supplementary question is not

about whether it is needed or not needed. Ask the supplementary question.

Mr Brefo: Mr Speaker, because the Minister is saying there is no availability of funds, I just want to ask the Minister if he can replace it with traffic lights. I think it will serve the same purpose.

Mr First Deputy Speaker: I intend not to allow the Hon Minister answer that question. Do you have any further supplementary questions?

Mr Brefo: No, we are praying that funds will be available.

Mr First Deputy Speaker: Thank you very much. We will move to the Question numbered 661 standing in the name of Hon Ida Adjoa Asiedu, Member of Parliament for Ayensuano. Hon Member, you have the floor.

Reconstruction of the Broken Bridge in Amanase Township

Ms Ida Adjoa Asiedu (NPP — Ayensuano): Thank you Mr Speaker for the opportunity. I rise to ask the Minister for Roads and Highways the urgent steps the Ministry is undertaking to construct the broken bridge in the Amanase township.

Mr Agbodza: Thank you, Mr Speaker.

Background

The broken culvert connects the inhabitants of Akorabo, Amanase and its environs to the Amanase market. It is located in the Ayensuano District of the Eastern Region.

Current Programme

There is no programme for the proposed intervention.

3:04 p.m.

Future Programme

Engineering studies and cost estimates have been carried out for the proposed structure subject to the availability of funds.

Mr First Deputy Speaker: Yes, Hon Member, any supplementary question?

Ms Asiedu: Mr Speaker, for now, I have no supplementary question.

Mr First Deputy Speaker: Thank you very much. Question numbered 581 standing in the name of Mr Francis Asenso Boakyee, Member of Parliament for Bantama.

Ms Patricia Appiagyei on behalf of Mr Francis Asenso Boakyee (NPP — Bantama): Mr Speaker, I come under Order 92 and seek your leave to step down the Question, as the Member of Parliament explains that the time lapse has improved the conditions for that.

Mr First Deputy Speaker: Very well.

[Question withdrawn by leave of Mr Speaker]

We then move to Question number 582 standing in the name of Mr Kwame Anyimadu-Antwi, Member of Parliament for Asante Akim Central.

Dr Gideon Boako (NPP — Tano North): Mr Speaker, I come under Order 883 to ask your permission to ask the Question on behalf of the Member of Parliament for Asante Akim Central. I have the authority to ask the Question.

Mr First Deputy Speaker: I am ready to grant leave but not permission.

Dr Boako: Mr Speaker, I accordingly seek your leave.

Mr First Deputy Speaker: Very well.

Covering of Trenches beside the Main Road at Konongo- Kumasi Road

Dr Gideon Boako on behalf of Mr Kwame Anyimadu-Antwi (NPP— Asante Akim Central): Mr Speaker, I beg to ask the Minister for Roads and Highways whether the Ministry is aware of the newly announced proposal by His Excellency the President John Dramani Mahama to construct a new six-lane Accra-Kumasi expressway and provide details including its scope, feasibility studies, estimated cost, funding and implementation timelines.

Mr Agbodza: Mr Speaker, on a lighter note, I prepared an Answer for Hon Asenso Boakyee but he decided not to ask the Question. I hope this settles the issue.

Mr First Deputy Speaker: Hon Minister, once the Question is withdrawn, the Answer is for you.

Mr Agbodza: But I prepared an Answer, and I would have wished to read the Answer to the public.

Mr First Deputy Speaker: No, per the rules, the answer is for you.

Mr Agbodza: I will put the answer in his pigeon hole.

Mr First Deputy Speaker: Very well.

Mr Agbodza: Mr Speaker,

Background

The Konongo-Kumasi stretch is a key segment of the N6 Accra-Kumasi trunk road carrying heavy national and inter-regional passenger and freight traffic.

The road embankment washout was brought to the attention of the supervision team during the Rehabilitation of the Apedwa – Ejisu Road (169.55km): Lot 1 – Rehabilitation of the Ejisu – Konongo – Dadieso – Nkawkaw Section (90.10km).

Current Programme

There is no programme on the road.

Future Programme

Engineering studies and cost estimates are being carried out on the road for consideration, subject to the availability of funds.

Mr First Deputy Speaker: Hon Member, any supplementary question?

Dr Boako: Mr Speaker, respectfully, no supplementary question.

Mr First Deputy Speaker: Thank you very much, Hon Minister for Roads and Highways, for attending upon the House to respond to the Questions.

You are hereby accordingly discharged.

Hon Members, the Hon Minister for Local Government, Chieftaincy and Religious Affairs is scheduled to also respond to some questions. May I humbly ask him to take the designated seats as I call on Hon Dr Albert Tetteh Nyakotey, Member of Parliament for Yilo Krobo to ask the Question numbered 199.

The Hon Member is not in. I will therefore call on the Minister to call on the Clerks to transmit the Answer as published in the *Hansard* to him.

MINISTRY OF LOCAL GOVERNMENT, CHIEFTAINCY, AND RELIGIOUS AFFAIRS

Rebuilding of the Klo-Agogo and the Nkurakan Markets

Dr Albert Tetteh Nyakotey (NDC — Yilo Krobo): Mr Speaker, I beg to ask the Minister for Local Government, Chieftaincy, and Religious Affairs the plans of the Ministry for the rebuilding of the Klo-Agogo and the Nkrakan markets in Yilo Krobo Constituency.

Minister for Local Government, Chieftaincy and Religious Affairs (Mr Ahmed Ibrahim) (MP): Mr Speaker, the Klo-Agogo Market, which began small in 1954 by local traders within the communities, is currently the Yilo Krobo Municipal Assembly's major viable and booming food market, strategically located within the centre of the municipality.

Mr Speaker, the market as of today attracts 7000 traders, farmers and shoppers from neighboring communities and adjoining Districts such as Lower Manya Krobo, Upper Manya Krobo and Okere districts. Indeed, traders and shoppers from Accra, Tema, Ashiaman, Koforidua come to the market every Tuesday and Friday weekly to transact business. Undoubtedly, Klo-Agogo Market contributes significantly to the the Internally Generated Funds (IGF) of the Yilo Krobo Municipal Assembly.

Mr Speaker, similarly, the Nkurakan Market began in the 1970s and was taken over by the Yilo Krobo Municipal Assembly in the early 1980s. Currently, the market attracts over 5000 traders, farmers and shoppers from the adjoining districts, communities and towns such as Upper, Lower and Manya Krobo, Okere district, as well as towns such as Koforidua, Suhum, Nkawkaw, Tafo and Adawso.

Mr Speaker, the erstwhile NDC government, under the late His Excellency Prof John Evans Atta-Mills (2009-2012) and His Excellency John Dramani Mahama (2012-2016), carried out some renovation works on the Klo-

Agogo market, which included construction of stalls, a warehouse, and a number of pavilions in the Market. To complement this effort, the Yilo Krobo Municipal Assembly in 2015, constructed walls to safeguard the facilities and goods in the Market.

During the same period, the Nkurakan Market was also given a massive facelift. This included, but was not limited to, paving of the entire market square, construction of a public toilet, and construction of a multi-storey building with shops for traders to keep their non-perishable goods safely. A gesture that ensured some decency for the traders and the shoppers who patronised the market at the time.

Mr Speaker, information available to me indicates that the market infrastructure is currently in a very deplorable state. Market men and women struggle to take shade from the scorching sun and rain, negatively affecting the current patronage.

Obviously, the infrastructure requires major rehabilitation; reconstruction of modern model market stalls, sheds, and additional stores to give the market the required facelift.

Mr Speaker, with the allocation of over 80 per cent of the DACF to the various MMDAs and 25 per cent earmarked for projects as such, it is expected that the Yilo Krobo Municipal Assembly prioritises the rehabilitation of the Klo-Agogo and Nkurakan Markets to boost trading, culminating in local economic development and improved

living conditions of the good people of Yilo Krobo and its environs.

[Published by order of Mr Speaker]

Mr First Deputy Speaker: We move to the Question numbered 313, standing in the name of Professor Kingsley Nyarko, Member of Parliament for Kwadaso.

Hon Member, you have the floor.

Total Number of Churches and Number of Registered Churches

Prof Kingsley Nyarko (NPP — Kwadaso): Mr Speaker, I beg to ask the Minister for Local Government, Chieftaincy, and Religious Affairs the total number of churches in the country and the number of them that are registered.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Ahmed Ibrahim: Mr Speaker, the PNDC Law 221 (1989), the Religious Bodies (Registration) Law, required churches and religious groups to register with the state. It was controversial but set the foundation for regulating religious institutions.

The Religious Bodies (Registration) Law, 1989 (PNDC Law 221), was intended to regulate the establishment of churches and religious bodies in Ghana.

The key provisions of the law were as follows.

- No person could establish a religious body without provisional approval from the Religious Affairs Committee.
- Provisional approval lasted up to three months and could be subject to conditions.
- Religious bodies had to register with the Ministry of the Interior to be recognised.

Mr Speaker, this caused controversy with many churches opposing the law, arguing that it infringed on freedom of religion and gave the government excessive control over religious practice.

Today, churches are registered as companies limited by guarantee with the Registrar General's Department (RGD). This gives them legal recognition, the ability to own property, and protection under Ghanaian law.

However, the Registrar General's Department does not publish a single national number for all registered churches. Regional data and surveys show thousands of churches, including over 2,200 registered in Greater Accra alone as of 2025, with 98.1 per cent being single-owner operations and the rest affiliated with larger brands. Extrapolating this figure nationwide, it certainly several thousand, but not officially consolidated.

Mr Speaker, instead of registration counts, the Ghana Statistical Service (GSS) monitors and tracks the religious affiliations of the population. The 2021

Population and Housing Census indicates that 71.2 per cent of Ghanaians identify as Christian, spread across Catholic, Protestant, Pentecostal/Charismatic, and other Christian denominations, confirming the extent of church presence. Thus, (31.6 per cent Pentecostal/Charismatic, 18.4 per cent Protestant, 10 per cent Catholic, 11.2 per cent other Christian)

Mr Speaker, to ensure the provision of accurate data on churches in the near future, the Ministry will establish the following:

- (1) A formal collaboration with the Registrar General's Department (RGD) and the Office of the Attorney General and the Ministry of Justice to create a data-sharing agreement with RGD for accessing records of churches registered as companies limited by guarantee.
- (2) Within the local governance structure, the Metropolitan, Municipal, and District Assemblies (MMDAs) will maintain local registers of churches operating within their jurisdictions, and consider the development of a Digital Registry System that will serve as a centralised platform for churches to update their operational status annually. This system will be linked to RGD's system for verification.

Mr First Deputy Speaker: Yes, any supplementary?

3:14 p.m.

Prof K. Nyarko: Mr Speaker, I would like to highly commend the Hon Minister for the comprehensive responses to this important Question. Looking at the Ministry's plan to ensure that that it creates a database and a data registry, when does the Minister intend starting these important interventions to get the accurate number of churches in the country? Thank you.

Mr Ibrahim: Mr Speaker, as I stated, earlier when the PNDC law was enacted, it was controversial because religious bodies felt that there was going to be Government interference. But now, looking at this Question, it has become important that we are able to identify the number of churches in the country. Looking at where the Question is coming from, it tells us that the collective wisdom of this august House of people's representatives must and should know the number of churches that we have in the country. That being the case, I will have to engage on three things. The Ministry of the Interior has a role to play, and the Attorney-General and Minister for Justice has a role to play. In that regard, if I stand here and say by June, I am now going to consult with colleague Ministers, their availability is also part of the question. So, I will plead with my Hon Colleague that yes, it is better we begin this year, but to give a definite date that by June or by October, we will not be concluding with this.

Digital registry system involves cost. Therefore, it needs proper planning and collaboration. Thank you for the opportunity.

Prof K. Nyarko: Mr Speaker, I want to thank him for the answers and I am done waiting for the Question on the mosques. Thank you.

Mr Vincent Ekow Assafuah: Mr Speaker, I want to commend the Minister for Local Government, Chieftaincy and Religious Affairs for embracing digitalisation. Instances like this, one of the challenges that we are going to face is issue of compliance. How is the Ministry going to enforce compliance with respect to the churches in terms of the registration on the digital system? Compliance is going to be an issue. How is the Minister going to enforce compliance? Thank you.

Mr First Deputy Speaker: Hon Member, I think the Minister has answered the Question, raising an issue about the difficulty complying with the PNDC law on the fact that the churches came together to say that the 1992 Constitution guaranteed freedom of religion. Therefore, compliance with the law will give Government control over the churches. That has clearly been stated by the Minister. So, if the Hon Member has another Question, he may do so.

Mr Assafuah: Thank you very much, Mr Speaker, for the guidance, but I was very specific. I was very specific in the sense that in terms of digital registration, there is going to be an issue with respect to compliance. I was not talking about compliance in generality. As part of the Hon Minister's third strategy, he said that he is going to ensure that the churches are going to register by way of digital registration. I am asking

him a specific Question. When it comes to the digital registration—

Mr First Deputy Speaker: Once you are asking a specific Question, file a specific Question.

Mr Assafuah: It is flowing from his answer.

Ms Appiagyei: Thank you, Mr Speaker. I would like to ask of the Minister for Local Government, Chieftaincy and Religious that in helping to establish the numbers, would it be possible to engage the Metropolitan, Municipal and District Assemblies to conduct a manual check on these figures. Thank you.

Mr First Deputy Speaker: Hon Minister, I think this is a suggestion for you that we should contact the MMDAs to help with the registration of the numbers.

Ms Appaigyei: Mr Speaker, I think you cannot just flatly say a suggestion. We want the assurance of the Minister to tell us if it is possible or not.

Mr First Deputy Speaker: Minister, come and tell us whether it is possible or not possible.

Mr Ibrahim: Mr Speaker, in fact, it is in my answer that Metropolitan, Municipal, and District Assemblies will be called upon to take registry of churches within their jurisdiction. I think the Hon Deputy Minority Leader's suggestion or Question, if not rhetorical, is in confirmation of the answer I gave,

that the MMDAs have a role to play. Mr Speaker, if we go to every MMDA, we have an association of churches. So, taking registry of the churches within the area, we could fall on the association of churches, and it would be easier to be done. Mr Speaker, that will be done, and it is possible.

I know that is what you wanted me to say, and I said it.

Dr Gideon Boako: Mr Speaker, the Minister's response indicates a sidestep of the PNDC law for the Companies Act, 2019 (Act 992) under which the churches are registered now. The PNDC law, I know, is not repealed. Does it mean that the churches are in violation of this PNDC law, and what are the sanctions?

Mr First Deputy Speaker: Hon Member, I will disallow the Question trying to convert the Minister into a judge. You may ask another Question.

Dr Boako: Mr Speaker, I do not have any other Questions.

Mr First Deputy Speaker: Let us move to Question number 675, standing in the name of Dr Zanetor Agyeman-Rawlings. Yes?

Ms Comfort Doyoe Cudjoe (NDC — Ada): Mr Speaker, I have permission to ask the Question on her behalf.

Mr First Deputy Speaker: I am not supposed to grant permission.

Ms Cudjoe: I have the authority.

Mr First Deputy Speaker: Very well. If you have the authority, go ahead and ask the Question.

Reconstruction of the Novotel Market

Ms Comfort Doyoe Cudjoe on behalf of Dr Zanetor Agyeman-Rawlings (NDC — Klottey-Korle): Mr Speaker, I beg to ask the Minister for Local Government, Chieftaincy and Religious Affairs when the Novotel Market will be rebuilt.

Mr Ibrahim: Mr Speaker, following the fire outbreak that ravaged the Odawnaa Market on 20th November, 2020, the Ministry received from the Klottey-Korle Municipal Assembly through the Greater Accra Regional Coordinating Council for consideration and onward submission to the Ministry of Finance, a proposal from Bnab Ghana Limited for the reconstruction of the market.

In our quest to create enabling environment to facilitate trade and local economic development at the local level, the Ministry aims to facilitate the development of the various markets within the MMDAs into modern markets and retail infrastructure to enhance domestic trading and revenue mobilisation.

In view of the above, the proposal was forwarded to the Ministry of Finance for consideration and further action.

Mr Speaker, currently, the project has been registered with the Project Identification Unit of the Ministry of

Finance with Project Preparation Identification Number: 2221220001. The Assembly, through the Greater Accra Regional Coordination Council and the Ministry, is currently working with the prospective investor (Bnab), supported by the Ministry of Finance, and the Office of the Attorney General to complete the PPP arrangement on a Build Operate and Transfer (BOT) basis.

A pre-feasibility study has been carried out on the project, and the Report submitted to the Ministry of Finance. Consequently, the Draft BOT Concessionary agreement has also been reviewed and approved by the Office of the Attorney-General and Ministry of Justice and forwarded to the Ministry of Finance for further action.

3:24 p.m.

Mr Speaker, the project duration will be 36 months, which is expected to commence immediately an approval is granted by the Ministry of Finance.

The construction stage of the project will be phased to have a controlled relocation of the traders at the undeveloped part of the site.

Ms Cudjoe: Mr Speaker, I think he has satisfied all questions that I would have asked again.

Mr First Deputy Speaker: Let us move to the Question numbered 364, standing in the name of Mr Kwame Appiah Kodua, Member of Parliament for Fanteakwa North.

Mr Charles Asuako Owiredu: Mr Speaker, I have his authorisation to ask the Question.

Mr First Deputy Speaker: Please do.

Completion of Begoro Central Market

Mr Charles Asuako Owiredu on behalf of Mr Kwame Appiah Kodua (NPP — Fanteakwa North): Mr Speaker, I beg to ask the Minister for Local Government, Chieftaincy and Religious Affairs the measures implemented for the final completion of the Begoro Central Market.

Mr Ibrahim: Mr Speaker, the Begoro Central Market project is a two-storey 36-Unit lockable market stores awarded at a contract sum of One Million, Four Hundred and Twenty-five Ghana Cedis (GH¢1,425,000.00) and funded under the IPEP programme by the then Middle Belt Development Authority (MBDA). The project is being executed by Messrs BBB Limited.

Information available to me indicates that the project is at about 60 per cent physical completion. Payment to date stands at Eight Hundred and Sixty-six Thousand, Nine Hundred and Fifty-seven Ghana Cedis, Sixty-five Pesewas (GH¢866,957.65).

Mr Speaker, this project is among the “legacy” projects inherited by the Ministry of Local Government, Chieftaincy and Religious Affairs following the realignment by His Excellency the President of the Republic

in January 2025. Accordingly, the Ministry has initiated the process to take nationwide inventory of all such on-going projects for completion by the various MMDAs.

Mr Owiredu: What are the timelines for the completion of this project that is dear to the people of Begoro?

Mr Ibrahim: Mr Speaker, we have about 2,833 of such uncompleted projects, therefore, the assemblies will have to embark upon the legacy project. That is why in the approval of the formula, we said 20 per cent of the District Assembly Common Fund (DACF) should be allocated for legacy project. So, I may not be able to give a definite timeline on behalf of the assembly, but I think they will look among the legacy projects within their jurisdictional areas and prioritise on how best they can complete them. There is no allocation in the Ministry's budget for such things.

Mr First Deputy Speaker: This is constituency-specific. Before we move on to another Question, let me crave your indulgence to announce the presence of our student visitors and other visitors in our midst.

We have Kpone Okpokli Youth Association, led by Joshua Tetteh, Vice-Chairman. They are from Kpone Katamanso and are 16 in number.

[Representatives of the Kpone Okpokli Youth Association were acknowledged]

Mr First Deputy Speaker: We also have Kidz Vision Academy, led by Samuel Oppong, Head of Department for the Primary level. They are from Trobu Consistency and are 62 in number.

[Pupils from Kidz Vision Academy were acknowledged]

Mr First Deputy Speaker: We have Family Care School, led by Bosson Sena, NCCE Director. They are from Effutu and are 50 in number.

[Pupils of Family Care School were acknowledged]

Mr First Deputy Speaker: We also have UNIPRA South, also led by Bosson Sena. They are from Effutu and are also 50 in number.

[Representatives of UNIPRA South were acknowledged]

Mr First Deputy Speaker: We have Crystal Gates International School led by Mr Ernest Apraku, Principal, Academics. They are from Adentan Consistency and are 66 in number.

[Pupils from Crystal Gates International School were acknowledged]

Mr First Deputy Speaker: Then we have in our midst Christine Akwetey, Winifred King, Philomena Nana Owusu, Stephanie Amoh, and Gloria Amoh. They are Ghanaian residents in Brussels, Belgium, and are here on a visit to Parliament of Ghana.

[A delegation of Ghanaian residents in Belgium were acknowledged]

Mr First Deputy Speaker: I urge all of you to have a fruitful visit to Parliament.

We then move to the Question numbered 365, standing in the name of Hon Maxwell Kwame Lukutor, Member of Parliament for South Tongu.

ORAL ANSWERS TO QUESTIONS

Ministry of Local Government, Chieftaincy and Religious Affairs

Upgrade of Assemblies conferred with Municipal/Metropolitan Status

Ing Surv Maxwell Kwame Lukutor (NDC — South Tongu): Thank you, Mr Speaker. I beg to ask the Minister for Local Government, Chieftaincy and Religious Affairs the plans of the Ministry to upgrade the Assemblies which were conferred with Municipal/Metropolitan status last year and when the Legislative Instrument will be passed for the Assemblies to be inaugurated.

Mr Ibrahim: The Ministry received numerous petitions between 2020 and 2024 requesting the upgrade of some districts and municipalities to municipal and metropolitan status, respectively.

Following extensive consultations and technical assessments, Executive approval was granted by the former President in December 2024, which was widely published, but this could not be laid in Parliament due to transitional processes and other administrative issues following the 2024 presidential and parliamentary elections. Thus, the Legislative Instruments (L.I.) to complete the process of upgrading these districts and municipalities as per section

3(1) of the Local Governance Act, 2016 (Act 936) could not be laid for consideration and passage.

Mr Speaker, as part of efforts to assess districts to ascertain their feasibility of being upgraded as pledged in the Resetting Ghana Agenda Manifesto of the National Democratic Congress (NDC) Government, I have constituted a committee to conduct assessment of all the previous districts and municipalities, as well as those captured in our manifesto and make appropriate recommendations for consideration and approval in line with the 1992 Constitution and Act 936.

Mr Speaker, I wish to inform this august House that the committee started its work in December 2025, and I am reliably informed that the report would be submitted to me by the end of this month for consideration and further action in consonance with laid down procedures. Thank you, Mr Speaker.

Mr First Deputy Speaker: We will move to the Question numbered 395, standing in the name of Mr Daniel Dung Mahama. You have the floor.

Dr Thomas Winsum Anabah: Mr Speaker, I rise under Order 88 (3) with permission from the—

Mr First Deputy Speaker: I do not grant permissions.

Dr Anabah: Seeking your leave. I have the authority —

Mr First Deputy Speaker: Hon Member, are you sure you have the authority of the Member to ask a Question on his behalf?

Dr Anabah: Yes, Mr Speaker.

Mr First Deputy Speaker: Do you have authority or permission?

Dr Anabah: I have authority.

Mr First Deputy Speaker: Very well. Go ahead.

Receipt of Toyota Hilux in Upper East Region

Dr Thomas Winsum Anabah on behalf of Mr Daniel Dung Mahama (NDC — Talensi): Mr Speaker, I beg to ask the Minister for Local Government, Chieftaincy and Regional Affairs when the Upper East Region will receive the Toyota Hilux that were distributed to the other regions in 2024.

3:34 p.m.

Mr Ibrahim: Mr Speaker, the Office of the President, through the Office of the District Assemblies Common Fund (DACF), procured and distributed 169 Toyota Hilux Pickup vehicles for some selected Metropolitan, Municipal and District Assemblies (MMDAs) in September 2024 to facilitate their work at the district level. Upon my assumption of office, I requested the DACF to furnish me with the document on all the unregistered vehicles distributed to ascertain the beneficiary MMDAs and those outstanding.

Mr Speaker, I am yet to understand the criteria and the idea behind the selection of the beneficiary regions or districts around that period, but it is

established that among the outstanding MMDAs are those in the Volta, Upper East, Central, and Western Regions. Additionally, 24 out of 29 MMDAs in the Greater Accra Region did not benefit. Currently, the Ministry has received resolutions from some affected MMDAs through their respective Regional Deans, including the Upper East Region on the subject matter. The Ministry is considering the request in collaboration with the Office of the DACF and the Chief of Staff on the possible way forward.

Mr First Deputy Speaker: Any supplementary question?

Dr Anabah: No supplementary question, but to thank the Minister for the answers.

Mr First Deputy Speaker: Hon Members, this is constituency-specific. Let us move to Question numbered 526, standing in the name of Martin Adjei-Mensah Korsah, the Member of Parliament for Techiman South.

Accountability and Monitoring of DRIP Equipment Amid Reports of Deployment at *Galamsey* Sites

Mr Martin Adjei-Mensah Korsah (NPP — Techiman South): Mr Speaker, I beg to ask the Minister for Local Government, Chieftaincy and Religious Affairs whether the reports of DRIP machines being used at *galamsey* sites have come to his attention, and what the Ministry is doing to ensure accountability in the use of the said machines.

Mr Ibrahim: Mr Speaker, as you may be aware, the Minister of Local Government, Chieftaincy and Religious Affairs was not involved in the procurement of the heavy-duty earth-moving equipment meant under the District Road Improvement Project, DRIP.

For the records, the said equipment was procured by the Office of the President, Jubilee House, Accra in a contract signed by the then Chief of Staff, with funding from the District Assemblies Common Fund. The Ministry only facilitated and participated in the commissioning of the equipment by His Excellency the former President on Wednesday, 31st July, 2024, at Independence Square. Mr Speaker, on my assumption of office and subsequent realignment of the operations of the DRIP, the original scope of the project was expanded, which re-positioned the secretariat under the Ministry of Roads and Highways to be funded by the Road Maintenance Trust Fund (RMTF) instead of the DACF as originally designed.

Mr Speaker, this new arrangement redirected all reports on the operations of the project at the MMDAs and RCCs to the Office of the National Coordinator of the DRIP without recourse to the Ministry of Local Government, Chieftaincy and Religious Affairs. On the basis of the above development, I am not reliably informed and cannot attest to the allegation being made by my Hon Colleague.

Mr Korsah: Mr Speaker, given that the Realignment Programme that the

Minister talks about has now positioned it under the Ministry of Roads and Highways, I am sure the Minister may not be ready to take it now, so I would refile it so I can ask the subsequent Questions.

Mr Speaker, thank you.

Mr First Deputy Speaker: Very well. The Question numbered 436, standing in the name of Hon Duke William Allen Kwame Amoako-Atta Ofori-Atta.

Strategies Adopted by the Ministry to Facilitate the Completion of Social Cohesion (SOCO) Infrastructure and Market Projects

Mr Duke William Allen Kwame Amoako-Atta Ofori-Atta (NPP — Fanteakwa South): Mr Speaker, I beg to ask the Minister for Local Government, Chieftaincy and Religious Affairs what steps are being implemented to ensure the timely completion of 618 infrastructure projects and 60 markets under the Gulf of Guinea Social Cohesion (SOCO) Project.

Mr Ibrahim: Mr Speaker, following the inception of the 2024 implementation cycle of the SOCO project, progress has been steady. However, progress slowed in June 2025 due to funding constraints. Despite these challenges, I am pleased to report that 298 out of the 618 infrastructure projects and 28 out of the 60 market facilities have been completed. The remaining projects are at advanced stages of completion.

To ensure the timely delivery of all remaining subprojects, the Ministry has instituted the following measures:

1. **Intensified Monitoring and Evaluation:** Tracking mechanisms have been intensified to monitor progress across all districts. These systems help identify delays and bottlenecks early, allowing for swift corrective action.
2. **Accelerated Financial Disbursements to MMDAs:** The Ministry disbursed GHC143,313,750 to all 48 Metropolitan, Municipal, and District Assemblies (MMDAs) on 25th March, 2025, and an additional GHC28,949,000 to 25 MMDAs on 9th September, 2025 to service Interim Payment Certificates (IPCs) and facilitate ongoing works.
3. **Stakeholder Engagement and Assurance:** The Ministry actively engaged contractors and supervisors from all project zones on the 5th and 6th August, 2025 to assure them of the reliability of payments and the Ministry's commitment to timely project delivery. This has helped restore confidence and momentum in the field.
4. **Orientation for Local Government Implementation Heads:** All 48 MMDCEs and MMDCDs from 17th to 23rd August, 2025 in the project implementation districts have been engaged and oriented on the expectations for project

delivery. These sessions provided a platform to clarify concerns and strengthen local oversight and accountability.

5. **Anticipated and Additional Funding Requirements:** The Ministry has been assured by the Ministry of Finance of a subsequent drawdown of GHC61,250,000 by the end of the year to continue servicing IPCs. However, to ensure full completion of all remaining projects, an additional GHC170,000,000 will be required.

Mr Speaker, the Ministry remains resolute in its commitment to delivering the SOCO Project in full. We are working diligently with all stakeholders to ensure that the infrastructure and market facilities are completed to standard, on time, through inclusive development across the northern regions.

Mr First Deputy Speaker: Hon Member, any supplementary question?

Mr Ofori-Atta: Mr Speaker, I asked the Minister what timelines do we have for completion of this project since the 2026 Budget Statement and Economic Policy captures the funding for the project?

Mr Ibrahim: Mr Speaker, as I said, funding slowed, and progress also slowed, but I have received assurance from the Minister for Finance that there will be timely delivery of the funds this year.

3:44 p.m.

So, I hope that that assurance will be complied with. When that is done, the project will be completed on time. Without that, you know my challenges.

Mr First Deputy Speaker: Hon Members, let us move to the Question numbered 438— Yes?

Mr Owiredu: Respectfully, I have a supplementary question to the Answer that the Minister just gave.

Hon Minister, you may guide me if I am wrong, but I am very much aware with respect to the SOCO Project, I believe that before contracts are awarded, as part of the requirements, you need to make sure that funding is available. So, on what basis is funding a problem for the completion of the project, especially when funding is a requirement before contracts are awarded? Kindly explain that to the House, respectfully?

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Ibrahim: Mr Speaker, as I said, what my Hon Colleague is saying is right. The SOCO Project is a five-year programme and it will end in 2027. The challenge, is that the administrative cost was overspent. What was meant to be spent in five years was almost exhausted in three years.

Therefore, the World Bank came for us to have further discussions. That is why I said, we may need additional

funding, which I have received assurance from the Minister for Finance for.

Mr First Deputy Speaker: Hon Members, let us move to the Question numbered 438, standing in the name of Mr Charles Owiredu, Member of Parliament for Abirem.

Update on the Elevation of Birim North District Assembly to a Municipal Assembly

Mr Charles Asuako Owiredu (NPP — Abirem): I rise to ask the Minister for Local Government, Chieftaincy and Religious Affairs to provide an update on the elevation of the Birim North District Assembly to a municipal status by President Nana Addo Dankwa Akufo Addo on 7th November, 2024.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Ibrahim: Mr Speaker, the Ministry of Local Government, Chieftaincy and Religious Affairs received several petitions between 2020 and 2024 demanding for the upgrading of their Districts and Municipalities. The recommendations submitted to the Office of the President for approval were all upheld as per the 2024 gazetted Executive Instruments.

Specifically, Executive Instrument (E.I. 551 of 2024) was granted, upgrading the Birim North District Assembly to a Municipal status. However, the corresponding bill for the Legislative Instrument to complete the process of upgrading, as required under

Section 3(1) of the Local Governance Act, 2016 (Act 936), as amended, could not be laid in Parliament due to transitional processes following the 2024 Presidential and Parliamentary Elections.

The Ministry is taking steps to facilitate the passage of the outstanding Legislative Instruments to complete the process, as I earlier indicated.

Thank you.

Mr First Deputy Speaker: Yes, any further question?

Mr Owiredu: Mr Speaker, since it is already been a year, I would want to find out from the Minister, whether he has any timelines for the implementation of this, that is the upgrading of my district to a municipal status.

Mr First Deputy Speaker: Minister, you have the floor. Please do you have any timeline?

Mr Ibrahim: Mr Speaker, my Hon Colleagues should have confidence in me. As I said, a committee has been constituted. We are finalising all the process. I will receive the report, so that will bring the entirety of the thing before this House. It will be in your court for consideration and approval.

Mr First Deputy Speaker: Yes, any further questions?

Mr Owiredu: Mr Speaker, unfortunately, the issue of confidence does not come in here, because the

people of Birim North are eager. This issue has been on the table since 2024. So please give us the timeline—

Mr First Deputy Speaker: Hon Member, I do not think you have a supplementary question. Kindly resume your seat.

Hon Minister, I thank you sincerely for attending upon the House to respond to your questions. You are accordingly discharged.

Yes, Hon Member?

Mr Richard Acheampong: Mr Speaker, we can turn to the item numbered 8 of today's *Order Paper*—Statements.

Mr First Deputy Speaker: Hon Members, Question time has ended. We move to the item numbered 8 to take Statements.

Hon Members, in view of the fact that we have 10 Statements, what do we do?

Mr R. Acheampong: Mr Speaker, we would take the Report from the Committee on Energy, but the Minister is not in. So, we would take up to “D”, so that when the Minister comes, we go back there—

Mr First Deputy Speaker: Is the word “taking” being used in respect of the number of people who will be contributing to the Statement?

Mr R. Acheampong: Mr Speaker, we can limit ourselves to take two from each Side.

Mr First Deputy Speaker: Is that the agreement of the House?

Ms Patricia Appiagyei: Mr Speaker, I thought the understanding was to continue with the Legal Aid—

Mr First Deputy Speaker: Yes, that was the understanding at the Conclave, so I do not know why the Second Deputy Majority Whip is talking about—

Mr R. Acheampong: Mr Speaker, exactly so, but the Chairperson of the Committee and the Minister are not in.

Mr First Deputy Speaker: What of the Vice Chairperson of the Committee? Hon Member, the Chairperson of the Committee is in. Hon Members, by the agreement of the House, we take the item numbered 21, Legal Education Reform Bill, 2025 at Consideration Stage.

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, we would want to plead with you that before we take the item numbered 21, we take the item numbered 25. We may take the Report of the Committee on Security and Intelligence. We want to do that quickly before we zoom into the Bill, then we can have time to do the Bill.

Mr Speaker, we want to take your Report.

Mr First Deputy Speaker: Well, we have to take the item numbered 25. We have to take the item numbered 24, rather. The item numbered 24, Second Reading of Security and Intelligence Agencies Bill, 2025. Minister for Interior, you have the floor.

BILL — SECOND READING

Security and Intelligence Agencies Bill, 2025

Minister for the Interior (Alhaji Mohammed-Mubarak Muntaka) (MP): Mr Speaker, I beg to *move*:

That the Security and Intelligence Agencies Bill, 2025 be now read a Second time.

Mr Speaker, as you may know, we have had a number of Security and Intelligence Bill or Acts in our country that has run from 1996 all the way to today.

3:54 p.m.

All the way to today. To recollect Act 526, which was enacted in 1996, helped us to govern our security architecture all the way to around 2017, when we brought in Act 1030 and in Act 1030, we did a number of things that warrant that we are able to make some changes. Significantly, among the things that we needed to change that warranted the introduction of a new Bill is the use of the National Investigative Bureau (NIB), which also matches a bank's name, National Investment Bank.

Mr Speaker, as you know, everywhere in the world, you make sure that the acronyms for the security agencies do not match any other thing. And in fact, it is supported by law to make sure that nobody is able to name anything after an acronym of any of the security agencies. Unfortunately, we have a situation where when you say NIB, people are wondering whether you are talking about the bank or you are talking about the security agency. So, one of the significant things that we are trying to do is to reintroduce the name BNI. But this time, even though the BNI of yesterday was Bureau of National Investigation, this BNI will still remain Bureau of National Intelligence.

Mr Speaker, significant among the Bill in Act 1030 was the role of the Minister for National Security.

Mr Speaker, as you may know, the nature of the security architecture, if we look at Article 83, is largely a function of the President. The National Security Council is chaired by the President and because the President cannot be running to Parliament to do other things, he tries to assign somebody to oversight that. But if you have anybody that has worked in the space, they will tell you that if we are not careful, we would create conflict between a detailed ministerial role and the function of the National Security Coordinator. Because he is supposed to coordinate all the activities within the space. If we assign or leave a ministry called Ministry of National Security, that largely is supposed to be an oversight and if we are not careful, they begin to

conflict and they begin to have misunderstandings which affect the security architecture that we have in the country. So, one of the things that we are trying to do is to keep this position as more or less that of the President so that he gets one of his ministers to play that oversight role without necessarily having the fine detail designation of a Minister for National Security. So that as much as possible, we would try to avoid the conflict between the minister and the National Security Coordinator.

Mr Speaker, the Bill as we have proposed it now, also tries to look at the functions of some of the key security agencies that we have and precisely is the Narcotics Control Commission, the National Identification Authority, and the like of them.

Mr Speaker, they have become a very important aspect of our security architecture. But because of the nature of the Article 83 of the 1992 Constitution, that we cannot try to use a Bill or an act to amend the Constitution—But we believe that we would be able to correct these anomalies at the regional and the district level. So yes, if we look at Article 83, we cannot use an Act to amend it so we cannot add, for example, Ghana Immigration Service at the National Security Council. We cannot add the Ghana National Fire Service at the National Security Council. Neither can we add the Narcotics Control Commission there. But it gives us an opportunity to introduce it at the regional and the district level and we try to use this new act to do that.

Mr Speaker, over the period, we have been running away from the fact that the National Security Coordinator must have a secretariat that will help him to do this coordination and therefore we sometimes assume that he operates from the Office of the President. But everyone who had worked very closely with him would know the existence of a secretariat by the National Security Coordinator is a very important one where he is equipped with officers that will help him to carry out his or her function. Therefore, the new Bill that we are trying to introduce will make sure that those provisions are adequately made.

Mr Speaker, due to time constraints, I just want to urge this House to help us to be able to carry out this Bill, if necessary, through almost all the stages. Even though we did not apply for it to come under a certificate of urgency, I can say that this is something that we urgently need to get done so that we would be able to get the country running and continue to protect the sanctity of our country.

Mr Speaker, with this, I hope that the House will graciously support us to get this done expeditiously. Thank you.

Mr First Deputy Speaker: Hon Members, the Motion has been ably moved. I will therefore call on the Chairperson of the Committee to present the Committee's Report.

Chairperson of the Committee (Dr Zanetor Agyeman-Rawlings): Mr Speaker, I second the Motion—

Mr First Deputy Speaker: I stated all over that at Second Reading, we do not second the Motion. That is why I did not call on you to second the Motion but to present the Committee's report.

Ms Agyeman-Rawlings: Mr Speaker, very well. I would like to present the report on the Select Committee on Security and Intelligence on the Security and Intelligence Agencies Bill, 2025 and to just mention a few highlights regarding the Committee's deliberation on the report.

Introduction

The Security and Intelligence Agencies Bill, 2025 was presented to Parliament on Monday, 28th July, 2025, by the Hon Minister for the Interior, Alhaji Mohammed-Mubarak Muntaka, with assigned responsibility for National Security, and read the First Time.

Pursuant to Article 106 of the 1992 Constitution and Standing Order 258 of the House, the Bill was referred to the Committee on Security and Intelligence and the Leadership of the Committee on Defence and Interior for consideration and report.

Deliberations

The Committee considered the Bill with the Leadership of the Committee on Defence and Interior as directed. The Committee was assisted in its deliberations by the Hon Minister for the Interior, the National Security Coordinator, Directors-General of the Intelligence Agencies, Representatives of other

Security Agencies, officials of the Office of the Attorney-General, and representatives of relevant Civil Society Organisations.

The Committee also benefited from the expertise of various consultants, including Hon Bernard Ahiafor, First Deputy Speaker; Dr Benjamin Kunbuor, Law Lecturer with extensive experience in security sector governance, a former Majority Leader of the House and former Minister for Defence, Major General Emmanuel Kotia (Rtd), Ghana Armed Forces, Prof Raymond Atuguba, Director of Legal Education, Ghana School of Law, Hon Mahama Shaibu, Chairperson of the Committee on Constitutional and Legal Affairs, and Hon Kwame Anyimadu-Antwi, Ranking Member of the Committee on Constitutional and Legal Affairs.

The Committee is grateful to the Hon Minister for the Interior, the Consultants, and the Officials for their input and support during deliberations on the Bill.

Reference Documents

The Committee referred to the following documents during the deliberations:

- (a) Constitution of the Republic of Ghana, 1992;
- (b) Standing Orders of the Parliament of Ghana (2024);
- (c) Interpretations Act, 2009 (Act 792);
- (d) Security and Intelligence Agencies Act, 1996 (Act 526);

(e) Security and Intelligence Agencies Act, 2020 (Act 1030);

(f) Bureau of National Investigations Regulations, 2015 (L.I. 2227) and the

(g) Security and Intelligence Agencies (NIB) Regulations, 2024 (L.I. 2485).

Background Information

The Security and Intelligence Agencies Act, 1996 (Act 526) was in existence for over twenty-four years before it was repealed by the Security and Intelligence Agencies Act, 2020 (Act 1030). Four (4) years after the operationalisation of Act 1030, there is a need for re-enactment to reflect the current policy direction of the Government.

The policy direction of the Government is to provide for a security architecture where the National Security Coordinator coordinates the activities of the security and intelligence agencies in the country. The Bill envisages that the National Security Council, chaired by the President, will work directly with the Office of the National Security Coordinator and the Directors-General of the intelligence agencies.

The President will, however, assign ministerial responsibility for national security to a Minister.

The Bill establishes the Office of the National Security Coordinator as part of the security and intelligence agencies.

The Bill also seeks to streamline the functions of the National Security Coordinator and the security and intelligence agencies.

The Bill therefore seeks to repeal the Security and Intelligence Agencies Act, 2020 (Act 1030), to establish the required national security architecture in accordance with Government policy.

Object of the Bill

The Bill seeks to provide for matters relating to the National Security Council, to establish the Regional Security Councils and the District Security Councils, as well as to specify some of the State agencies responsible for coordinating and implementing government policies on the security of the State and attendant issues on or relating to the internal and external security of Ghana.

Summary of Provisions of the Bill

The Security and Intelligence Agencies Bill, 2025, is arranged into forty-six (46) Clauses and a schedule. The summary is as follows:

Clause 1 to 11 provide for matters relating to the National Security Council and regional and district security councils. The matters include the composition of the Council in accordance with Article 83 of the 1992 Constitution, procedure at meetings, the functions of the Council as specified in Article 84 of the Constitution, Committees of the Council, membership and ministerial responsibility for national security.

Clauses 12 and 13 provide for the security and intelligence agencies. The Clauses cover the composition and governing body of security and intelligence agencies.

Clause 14 to 16 provide for the Office of the National Security Co-ordinator. Appointment of National Security Coordinator and staff of the Office of the National Security Co-ordinator and functions of the National Security Coordinator are also provided for in the Clauses.

Clause 17 to 20 deal with the intelligence agencies. Clauses 17 and 20 provide for matters relating to the functions and staffing of internal and external intelligence agencies, while clauses 18 and 19 encapsulate the appointment and functions of Directors-General respectively.

Clause 21 to 28 provide for a complaints procedure for a person who is aggrieved by an act or omission of a security and intelligence agency. The provision indicated that complaints may first be submitted to the National Security Co-ordinator or Director-General and if unresolved or unsatisfactory, escalated to the Chief Justice, who appoints a tribunal to investigate and determine the matter. The tribunal, following High Court procedures, must ensure fair hearing, may dismiss frivolous or prejudicial complaints and can order remedies, including monetary compensation from public funds. Decisions of the tribunal can be appealed as of right to the Court of Appeal within thirty days.

Clause 29 to 31 make provision for warrants, allowing the National Security Co-ordinator, a Director-General, or their designated employee to apply in writing to a senior judicial or police officer. In the provisions, the application must specify facts justifying the warrant, the target persons, and the location, with special rules for warrants authorising interception of communications requiring a Superior Court Justice's personal signature. Warrants authorise specified persons to carry out powers such as intercepting communications or obtaining information and documents as stated.

Clause 32 to 35 contain the financial provisions and here Parliament shall approve moneys required for the expenses of the Council and security and intelligence agencies. Clauses 33 and 34 provide for accounts, audits, and annual or other reports, while clause 35 makes provision for employees' retirement benefits as determined by Regulations under the Act.

Clause 36 to 46 deal with miscellaneous provisions, including mandatory oaths for Council members and employees, restrictions and authorised conditions for disclosure of information and penalties for unauthorised disclosures. They also address evidentiary protections, grant employee's police-like powers, authorise the Council to make necessary Regulations, repeal the previous Act 1030 while saving related actions, and provide for consequential amendments and transitional matters.

Stakeholder Consultations

The Committee requested the submission of Memoranda from the public to aid its consideration of the Bill. A total of sixteen (16) Memoranda were received from state agencies and members of the public, some of whom further engaged the Committee during its deliberations.

The following institutions and persons assisted the Committee in the discharge of its mandate:

1. Office of the National Security Coordinator
2. The Economic and Organised Crime Office
3. National Intelligence Bureau
4. National Identification Authority
5. National Commission on Small Arms and Light Weapons
6. Narcotics Control Commission
7. Ghana Immigration Service
8. National Signals Bureau
9. Mr Martin A. B. K. Amidu
10. Brigadier General Benjamin Freeman Kusi (Rtd)
11. Mr Collins Ato Adjei
12. Ing. Abdul Rahman Shuiabu Mohammed

13. Commander P. Odoi-Narh

14. Mr Nicholas Yeboah

15. SO/Mr Jacob Kosi Amuzu

16. Oddoye Nii Laryea

Observations and Recommendations

Compliance with Article 106(2) Of the Constitution

The Committee observed that the Explanatory Memorandum does not clearly set out the policy objectives and underlying principles of the Bill, nor does it adequately identify the defects or mischief in the existing law that the Bill seeks to cure, as required under Article 106(2) of the 1992 Constitution.

In response to the Committee's observation, the Hon Minister for the Interior explained that the Bill seeks to establish a security architecture in which the National Security Coordinator assumes a more central role in coordinating the Country's security and intelligence agencies. The Bill also aims to eliminate the perceived over extension of the role of the Minister with assigned responsibility for National Security.

Additionally, the Hon Minister indicated that the acronym of the National Intelligence Bureau (NIB) is frequently confused with that of a commercial bank, the National Investment Bank (NIB). To avoid this confusion, the Bill proposes to rename the National Intelligence Bureau (NIB) as the Bureau of National Intelligence (BNI).

The Committee welcomed the proposal to rename the NIB to BNI. It emphasised the change from "Investigation," as used in Act 526, to "Intelligence," to align with international best practice.

Composition of the National Security Council

The Committee noted that expansion of the membership of the National Security Council, as requested by some stakeholders, was unconstitutional in the light of Article 83 of the 1992 Constitution, which restricts the composition of the National Security Council to representation of specified institutions. Additionally, the provisions of clause 1(2) of the Bill, which require the President to have regard to the Ghana Immigration Service, the Ghana National Fire Service and gender balance in appointing members of the Council, place a limit on the constitutional discretion of the President in Article 83(1)(k) of the Constitution. The Committee accordingly proposes the deletion of clause 1(2) of the Bill as part of its amendments.

The Committee acknowledges that some security and intelligence Agencies were fully established after the promulgation of the 1992 Constitution, hence were not included in the list of institutions under Article 83, despite the pivotal role they currently play in the security architecture of the country. The issue could only be resolved through a revision of relevant provisions of the Constitution to include representation from agencies critical to the

sustainability of security and intelligence measures currently instituted in Ghana. The Committee accordingly advocates that the respective recommendations presented by some of the security and intelligence agencies to the Constitutional Review Commission be favourably considered.

Membership of District and Regional Security Councils

The Committee expressed concern about the expanded membership of the Regional and District Security Councils in clauses 7 and 9 of the Bill, compared to the membership set out in Section 6 of the Security and

Intelligence Agencies Act, 2020 (Act 1030). The Bill adds to the membership of the Regional and District Security Councils, the Officer in charge of the Narcotics Control Commission in the region or district; the

Officer in charge of the National Identification Authority in the region or district; the Officer in charge of the Ghana National Ambulance Service in the region or district; as well as three members of Parliament from the region nominated by the Regional Minister and a Member of Parliament from the district nominated by the District Chief Executive.

The Committee noted that these additions could create a precedent for further expansion of the Councils' membership, which might not align with the composition of the National Security Council as provided for in Article 83 of the 1992 Constitution. The Committee is

of the view that representatives from these agencies could be co-opted to meetings of the Regional and District Security Councils as and when needed. The Committee further recommends that Members of Parliament be excluded from the Councils' membership, as their inclusion could increase political influence and potentially compromise the perceived political neutrality of the Councils.

Parliamentary Oversight of Security and Intelligence Agencies

The Committee proposed including a provision on parliamentary oversight in the Bill, in line with international best practices.

Members also welcomed the proposal that the Minister responsible for National Security submit a reviewed, coordinated national security policy and strategy to Parliament within one year of the inauguration of a new Parliament, as a means of strengthening parliamentary oversight of the National Security Council's operations.

The Committee subsequently recommended that quarterly and annual briefing sessions on the implementation of the national security policy and strategy be held for the Security and Intelligence Committee of Parliament, to further enhance oversight and scrutiny of security operations in the country. The briefing sessions would improve legislative oversight in accordance with Article 103 of the Constitution and ensure accountability of security and intelligence agencies. The inclusion of

such a provision will enable the Committee and for that matter, Parliament, to have oversight on the operations and expenditure of security and intelligence agencies. The reason being that by convention, their expenditure is not subject to public scrutiny by Parliamentary Committees due to the potential adverse implications of such disclosures on national security.

Deputy National Security Coordinator

The Committee observed that the Bill did not expressly provide for the appointment of a Deputy National Security Coordinator. In the view of the Committee, the absence of an express provision on the appointment of a Deputy Coordinator in the statute, could result in succession ambiguities, and impede flexibility in leadership arrangements.

The Committee acknowledges the huge workload of the Coordinator's Office, having regard to effective and efficient management of inter-agency collaboration, crisis response and policy implementation. It is therefore strongly recommended that a new provision be introduced in line with Article 195 of the 1992 Constitution for the President to appoint a Deputy National Security Coordinator to assist the National Security Coordinator in the performance of the functions of the Office. The arrangement, the Committee believes, will improve service delivery as it will ensure continuity in case of the absence or incapacity of the coordinator, limit discretionary leadership arrangements

that may impede the optimum functionality of the Office of the National Security Coordinator.

Proposal Regarding Warrants and Freezing of Assets

The Committee deemed the extension of authority to issue warrants to Directors-General and heads of security and intelligence agencies to be unacceptable. Various stakeholders cited operational delays and risks of information leakage as reasons for granting certain senior officers within the relevant agencies, the power to issue warrants and freeze assets during investigations. The power given to some category of senior officers to issue warrants for the freezing of the accounts of suspects, prevents suspects from emptying their accounts before the intelligence agencies obtain legal orders to freeze the accounts. The proposal was that the delegated authority be ratified by the Courts within two weeks of issuing the warrant.

The Committee, cognisant of the potential for abuse of such powers and acknowledging the principle that investigative bodies should not authorise their own intrusive powers, expressed concerns about legislating such an arrangement where some senior officers will have the power to issue warrants. The Committee's attention was drawn to the fact that, unlike the powers of arrest without warrant in specific circumstances conferred on officers of the rank of Superintendent and above of the Ghana Police Service, the scope of operations of security and intelligence

agencies was comparatively narrow and did not require such unrestricted powers, given the relative lack of spontaneity in their operations.

The Committee strongly recommends that the issuance of warrants and the authority to freeze assets should be the exclusive preserve of Justices of the Superior Courts of Judicature, to prevent the arbitrary use of such powers and also provide checks and balances within the Country's security structure.

Human Rights and Data Protection

The Committee recognises the importance of including data protection considerations in the Bill to safeguard the balance between national security and personal rights. Given the significant amounts of sensitive personal and classified information handled by security and intelligence agencies, the absence of provisions to ensure the institutionalisation of strong data protection measures would heighten the misuse and unauthorised access to information, which could undermine operational integrity and reduce public trust.

Accordingly, the addition of a new section on data retention and compliance in consonance with provisions of the Data Protection Act, 2012 (Act 843) as well as governance and quality assurance standards is consistent with international best practices. This would strengthen the legitimacy of intelligence and security operations by protecting privacy, maintaining confidentiality and reinforcing democratic oversight.

Proposed Amendments

The Committee proposed the attached amendments during the consideration of the Bill.

Conclusion

The Security and Intelligence Agencies Bill, 2025, subject to the incorporation of proposals for amendment, provides a clear, coherent and comprehensive legal framework for the effective regulation and functioning of security and intelligence agencies in Ghana. The Bill enhances oversight, strengthens accountability and transparency and ensures that the operations of these agencies are conducted in strict conformity with the Constitution and applicable international best practices.

The Committee is firmly of the view that the enactment of this Bill will reinforce Ghana's national security architecture, promote improved inter-agency coordination and establish a balanced framework that both safeguards human rights and civil liberties and enable the agencies to discharge their mandates efficiently and lawfully.

Accordingly, the Committee respectfully recommends that the House adopts its Report and pass the Security and Intelligence Agencies Bill, 2025 into law.

Proposed Amendments

1. Clause 1- Amendment proposed- Subclause (2), *delete*
2. Clause 3- Amendment proposed- Headnote, *delete* "Procedure at"

3. Clause 4- Amendment proposed-

- a. paragraphs (a) and (b), line 2, *delete* “the country” and *insert* “Ghana”
- b. paragraph (b), lines 2 & 3 *delete* “domestic and foreign security” and *insert* “domestic, foreign and security”.
- c. paragraph (c), line 2, *delete* “the country” and *insert* “Ghana”.

4. Clause 7- Amendment proposed- Subclause (1), paragraph (c), *delete* and *insert* as follows:

“(c) the District Chief Executives of the District Assemblies in the regional capital as the Council may determine;”.

5. Clause 7- Amendment proposed- Subclause (1), paragraphs (i), (o), (p), (q), *delete*6. Clause 7- Amendment proposed- Subclause (1), after paragraph (n), *insert* new paragraph as follows:

“(#) the officer in charge of the National Signals Bureau in the region;”.

7. Clause 7- Amendment proposed- After subclause (2), *insert* the following subclauses:

“(3) The chairperson of a regional security council may, in consultation with the regional

security council, invite such other persons as the chairperson considers necessary for any deliberations of the regional security council.

(4) A person invited to participate in the deliberations of the regional security council under subsection (3) shall not vote on a matter for decision before the regional security council.”.

8. Clause 8- Amendment proposed- In line 1, *delete* “in relation to the region” and *insert* “perform the following functions relating to the region concerned.”,9. Clause 9- Amendment proposed- Subclause (1), paragraph (h), (n), (o), (p), (q), *delete*10. Clause 9- Amendment proposed- Subclause (1), after paragraph (m), *insert* new paragraph as follows:

“(#) the officer in charge of the National Signals Bureau in the district;”.

11. Clause 9- Amendment proposed- After subclause (2), *insert* the following subclauses:

“(3) The chairperson may, in consultation with the district security council, invite such other persons as the chairperson considers necessary for any deliberations of the district security council.”

- (4) A person invited to participate in the deliberations of the district security council under subsection (3) shall not vote on a matter for decision before the regional security council.”.

12. Clause 10- Amendment proposed-
Line 1, *delete* “in relation to the district” and *insert* “perform the following functions relating to the district concerned:”,

13. Clause 11- Amendment proposed-
Subclause (2), paragraph (a), *delete* and *insert* the following:

“(a) within one year after the inauguration of a new Parliament, submit to Parliament a reviewed coordinated National Security Policy and Strategy approved by the Council;”

14. Clause 11- Amendment proposed-
Subclause (2), paragraph (), *delete* and *insert* the following:

“(c)perform any other function that the President may, in consultation with the Council, assign.”.

15. Clause 11 Amendment proposed-
After Clause 11, *delete* Sectional Note [Security and Intelligence Agencies]

16. Clauses 12 & 13- Amendment proposed- *Transpose* to follow Clause 16

17. New Clause- Amendment proposed- before clause 14 [*After*

sectional note “Office of the National Security Coordinator”], *insert* new clause as follows:

“Establishment of the Office of National Security Coordinator (#)
There is established by this Act the Office of the National Security Coordinator.”.

18. Clause 14- Amendment proposed- Subclause (1), line 3, after “Coordinator” *delete* “referred to in paragraph (a) of section 12”.

19. Clause 15- Amendment proposed- Paragraph (d), line 3, before “intelligence”, *insert* “security and”

20. New Clause- Amendment proposed- After clause 15, *insert* the following new clauses:

“Appointment of Deputy National Security Coordinator

(#) (1) The President may, in accordance with article 195 of the Constitution, appoint a Deputy National Security Co-ordinator.

(2) Where a Deputy National Security Co-ordinator is appointed, the Deputy National Security Co-ordinator shall hold office on the terms and conditions specified in the letter of appointment.

Functions of the Deputy National Security Coordinator

(#) The Deputy National Security Co-ordinator shall:

(a) assist the National Security Co-ordinator in the performance of the functions of the Co-ordinator; and

(b) perform any other function assigned by the National Security Co-ordinator.”.

21. Clause 16- Amendment proposed- Subclause (1),

a. line 1, *delete* “clause (1) of”

b. line 2, after “appoint” *delete* “any”

22. Clause 16- Amendment proposed- Subclause (2), *delete*

23. New Clauses- Amendment proposed- *Insert* the transposed clauses 12 and 13 to follow before clause 17 as follows:

“Composition of Intelligence agencies

#. The intelligence agencies in this Act comprise the

(a) internal intelligence agency existing immediately before the coming into force of this Act and known as the National Intelligence Bureau, now referred to as the Bureau of National Intelligence; and

(b) external intelligence agency existing immediately before the coming into force of this Act and known as the Research Department.”

Governing body of the intelligence agencies

#. The governing body of the intelligence agencies is the National Security Council.”.

24. Clause 18- Amendment proposed- Subclause (2), *delete* and insert as follows:

“(1) The President shall, in accordance with article 195 of the Constitution, appoint a Director-General as head of each of the intelligence agencies.”.

25. Clause 19- Amendment proposed- Paragraph (c), line 1, after “political”, insert “party”

26. Clause 20 - Amendment proposed- Subclause (1), line 1, *delete* “clause (1) of” and in line 2, *delete* “any”

27. Clause 20- Amendment proposed- Subclause (2), *delete*

28. Clause 21- Amendment proposed- Subclause (1), line 1, after Director-General, *insert* “concerned”

Clause 22- Amendment proposed- Subclause (2), paragraph (a), *delete* and *insert* as follows:

“(a) a Justice of the High Court, a retired Justice of the High Court or a lawyer with considerable knowledge in the area or subject matter of the complaint and the operations of security and intelligence agencies in general, as chairperson; and”.

29. Clause 31- Amendment proposed- *delete* and *insert* as follows:

“Effect of a warrant

30. A warrant issued under this Act shall authorise

(a) a person in a class of persons specified in the warrant to exercise the powers specified in the warrant for the purpose of intercepting communication, obtaining information, a record, a document or a thing of the type specified in the warrant; and

(b) any other person to provide assistance to the person exercising the powers specified in the warrant if the person required to provide assistance believes, on reasonable grounds, that the person exercising the powers specified in the warrant is doing so in accordance with a warrant.”.

31. Clause 32- Amendment proposed- *delete* and *insert* as follows:

“Expenses

32. Parliament shall approve moneys required for the expenses of the Council, Office of the National Security Coordinator and intelligence agencies.”.

33. New Clause- Amendment proposed- *Insert* new clause after clause 35 as follows:

“Parliamentary oversight of national security

(#) (1) Parliament shall have oversight in respect of national security in accordance with article 103 of the Constitution.

(2) Parliament may assign the responsibility under subsection (1) to a Committee of Parliament appointed for the purpose.

(3) A member of Parliament or an officer of the Parliamentary Service shall not proceed upon the business of the Committee in subsection (2) unless the member of Parliament or officer of the Parliamentary Service is vetted in accordance with the applicable national security vetting procedures.

(4) For the purpose of this section, “national security” means the Office of the National Security Co-ordinator and the intelligence agencies.”.

34. Clause 36- Amendment proposed-

- a. Subclause (1), line 3, after “take”, *insert* “and subscribe to” and
- b. Subclause (2), lines 3, *delete* “oath” and *insert* “Oath of Secrecy on Leaving Office”

35. Clause 39- Amendment proposed-
delete

36. Clause 42- Amendment proposed-
Subclause (1), line 1, *delete* “may” and *insert* “shall”

Clause 42- Amendment proposed-
Subclause (2), *delete* and *insert* the following:

“(2) Without limiting subsection (1), the Regulations may provide for

(a) the operations of the intelligence agencies; and

(b) matters relating to

(i) discipline;

(ii) reporting procedures;

(iii) the scheme of service;

(iv) grievance mechanisms;

(v) the conditions of service; and

(vi) the retirement benefits.”

of the officers and employees of the security and intelligence agencies.”.

37. Clause 43- Amendment proposed-

- a. *Insert* new definition for “Deputy National Security Co-ordinator” after the definition for “Council” as follows:

““National Security Co-ordinator” means the Deputy National Security Co-ordinator appointed under section 15”

- b. Definition for “District Chief Executive”, *delete* and *insert* as follows:

““District Chief Executive” includes a Metropolitan Chief Executive and a Municipal Chief Executive;”

- c. Definition for “District Coordinating Director”, *delete* and *insert* as follows:

““District Coordinating Director” includes a Metropolitan Coordinating Director and a Municipal Coordinating Director;”.

Rationale: To provide for the correct order of the list.

- d. Definition for “district security council”, *delete* and *insert* as follows:

““district security council” includes a metropolitan security council and a municipal security council;”.

e. Definition for “Minister”, line 1, after “Minister”, *delete* “responsible” and *insert* “assigned responsibility for”

f. *Insert* new definition for “security services” as follows:

““security services” mean the services connected with national security as determined by the Council;”.

38. Clause 44- Amendment proposed- Subclause (2), line 6, before “reviewed”, *insert* “revoked,”

39. Clause 45- Amendment proposed- Subclause (3), *delete*

40. Schedule- Amendment proposed- “Oath of Secrecy on Taking Office”, line 3, *delete* “an” and *insert* “any”

Dr Agyeman-Rawlings: Mr Speaker, the Report was presented to the Committee and referred from the Speaker and it was meant to be a joint Committee sitting between the leadership of Committee on Defence and Interior and the Committee on Security and Intelligence.

Mr Speaker, following the referral, the Bill was gazetted and the Committee received several memos from certain security and state agencies as well as members of the public and some civil society organisations.

Mr Speaker, in considering the Bill at the Committee, a few issues were

highlighted that I shall make reference to for the sake of brevity. A few observations that the Committee made was on the receipt of the Bill. The fact that, unfortunately, at the time, the explanatory Memorandum did not speak directly to the mischief that the Bill sought to cure. Following which, the Minister with oversight of the National Security Act, who is currently the Minister for the Interior, came before the Committee to clarify the reasons for which this Bill was presented and some of the policy underpinnings of same. Some of which the Minister has elucidated right here at Plenary.

Mr Speaker, it was quite significant that the Committee realised that there was not much said with regard to Parliamentary oversight. Given the nexus between secrecy and accountability, the Committee saw it fit to include a section on Parliamentary oversight, codified and well delineated to make sure that that level of accountability that must come to bear with regard to our intelligence agencies is in the Bill to prevent the evasive nature that can sometimes be prevalent in that particular sector.

Mr Speaker, the Committee also noted that there were certain additions that were sought to be made which would have been in contravention with Article 83 of the Constitution. There were recommendations to compel the President in one of the clauses with regard to the membership of the National Security Council, which the Committee felt strongly would limit the President’s discretion with regard to selection of

Membership of the National Security Council. So, the Committee was of the opinion that the clause that pretty much locked the President in place with regard to a decision on the membership of three extra persons be deleted from the Bill.

4:04 p.m.

Mr Speaker, there was also a provision made for the appointment of a Deputy National Coordinator in order to make the burden of responsibility a little bit less with regard to the operations of the National Security Coordinator.

One of the observations that was made in terms of the deliberation of the Committee and Members that came in was with the supposed creation of a new agency under the coordinator. This was later clarified and the Committee had it removed so that it actually is seen as the office of the coordinator as opposed to a new agency that was to be created to allow for the maintenance of the architecture in a form that actually aligns with the Constitution.

Mr Speaker, with regards to the issuance of warrants, another issue that was flagged by the Committee was the desire for the agencies to have the mandate to issue warrants which the Committee felt could result in an abuse of power. The Committee therefore agreed that the issuance of warrant ought to be by a justice of the Supreme Court of Judicature to prevent the abuse or possible abuse of the rights of citizens by agencies who could issue these warrants on their own. With regard to the issues on human rights and data protection, the

Committee also felt strongly that there ought to be significant amounts of safeguards in place with regards to data protection within the agency and with regard to the access of material that had been received through intelligence collection in the process.

Mr Speaker, given the recommendations made by the Committee in collaboration with consultants who assisted, the Committee concluded that this Bill incorporating the proposed amendments and with an enhanced version of the explanatory memo are in favour of this House passing this Bill into law.

Therefore, Mr Speaker, without much ado, I would like to recommend that this House adopt this Bill and pass the Security and Intelligence Agencies Bill, 2025 into law.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Members, Motion has been moved and the Reports of the Committee presented. Pursuant to Standing Order 127, a full debate shall arise on the principles of the Bill on the basis of the Explanatory Memorandum and the Report of the Committee.

The floor is now open.

Yes, Hon Patrick Yaw Boamah?

Mr Patrick Yaw Boamah (NPP — Okaikwei Central): Mr Speaker, thank you for the opportunity to contribute to this Motion.

It is welcoming to have the Security and Intelligence Agencies Bill, 2025 being debated this afternoon. Mr Speaker, I have gone through the Report and I would like to draw our attention to paragraph 6.7, which deals with clauses 29 to 31. Before I go there, I would like to make reference to Article 18(2) of the Constitution, with your permission, I read:

“That no person shall be subjected to interference with the privacy of his home, property, correspondence, or communication except in accordance with law and as may be necessary in a free and democratic society, for public safety or the economic well-being of the country, for the protection of health or morals, for prevention of disorder or crime, or for the protection of the rights of freedoms of others”.

Mr Speaker, clauses 29 to 31 of this Report deals with the powers that would be given to a Superior Court Justice, based on a report of the National Security Coordinator or any of his deputies, to target persons and locations with specific rules for warrant authorising interception of communications, under the signature of a judicial officer. Warrants authorising specific persons to carry out powers such as intercepting communications or obtaining information and documents as stated.

Mr Speaker, this powers that are being given to the National Security Coordinator or any officer designated by the president under his hand must be

exercised carefully under the Constitution. Very often when persons are given such powers, they overreact, they breach people’s privacy and fundamental human rights because of such others. We want the courts to be very firm and undertake the right steps when granting such orders.

Mr Speaker, it is also welcoming that the President is willing to cede his powers by appointing a National Security Minister. Mr Speaker, most countries in the West African sub-region and in Africa have a designated ministers for national security. I know for a fact that the Minister for the Interior is acting as the Minister for National Security. It is very important for the President to appoint a minister for national security to assist with the hard work that he is undertaking for the country. You all know that we do not have a Minister for Defence as we speak, and we think it is a welcoming Bill. Interfering with people’s privacy, intercepting their calls, searching their homes must be in accordance with the Constitution of the Republic of Ghana. And we will be checking the activities of the National Security Coordinator and its operatives in the exercise of these functions.

Mr First Deputy Speaker: So, you are speaking with specific reference to clause 29 to 31?

Mr Boamah: Yes, clauses 29 to 31, which deals with interception of communications under the hand of a judicial officer, it is on pages 4 and 5 of the Report.

Mr First Deputy Speaker: I am looking at the substantive Bill, which makes reference to application to the judge.

Mr Boamah: Mr Speaker, we are debating the Report.

Mr First Deputy Speaker: Yes, the principle and the Report. So, I am just drawing your attention to the fact that this is subject to an application.

Mr Boamah: I am saying that that person who is given that power must exercise those powers within the tenets of the law and the Constitution. That is all I am saying.

Mr First Deputy Speaker: Yes, but once a judge is the one going to grant or refuse the application—

Mr Boamah: I do not know if Mr Speaker wants to participate in the debate. *[Laughter]*

Mr First Deputy Speaker: No, I am not participating in the debate. But we want the factual situation to be put out.

Mr Boamah: So, Mr Speaker, it is also welcoming that the Minister for the Interior with oversight responsibility over national security is pushing this Bill. I know how passionate he has been. And he is also giving impetus to the Regional Security Councils and the District Security Councils. We go to a district, and somebody is performing the duties of a District Security Coordinator.

That person ought to be known and approved by the Minister for National Security. The security architecture that is being proposed here is going to be backed by law. So, whoever breaches any of the provisions in the law could be taken upon by any of the offenders.

I thank you, Mr Speaker, for the opportunity. But my interest was on the interference and interception of our communications.

Mr First Deputy Speaker: Yes, Hon Ntim Fordjour?

Rev John Ntim Fordjour (NPP — Assin South): Mr Speaker, I rise to contribute to the Report that has been laid, and to state that at the outset, the Committee raised serious objections to and concerns on the Explanatory Memorandum that accompanied the Bill, and as a matter of fact, observed a departure from the content of the Bill relative to what the memo itself sought to do.

4:14 p.m.

Mr Speaker, one of the very glaring discrepancies was a principle that the Bill seeks to create the office of the National Security Coordinator as an intelligence agency, which we disagreed and thought that it was improper for the central role that the office of the National Security Coordinator ought to play in coordinating decisions that are taken at the National Security Council. It ought not to be an agency, which was agreed upon by the sponsors of the Bill and amendment consequently made.

Mr Speaker, I refer you to page 6 of the Report. It states:

“The Committee observed that the Explanatory Memorandum does not clearly set out policy objectives and underlying principles of the Bill, nor does it adequately identify defects or mischief in the existing law that the Bill seeks to cure, as required under Article 106(2) of the 1992 Constitution.”

We thought that sufficient justification was not given to the particular mischief that the new Bill sought to cure and failure to provide sufficient justification for the mischief went to suggest that there may not even be a need for a new Bill to overhaul or to repeal the existing one and that specific amendment in Act 1030 could have sufficed. But that decision elicited further positioning from the sponsors and provided further information and policy clarity which persuaded the committee to accept. But in furtherance to that, the membership or composition of the regional security councils and the district security councils, as noted on page eight of the report, was problematic and we observed that it was not in consonance with the policy directive as enshrined in Article 83 of the Constitution which provides the framework for the composition of the National Security Council from which we draw the composition of the security councils at the regional and district level that is the proposed inclusion of National Insurance Authority, National Identification Authority, National Ambulance Service,

Narcotics Control Commission and Members of Parliament.

On their proposed inclusion that the policy sought to include a regional security council and district security council, we opposed and thought that was problematic and inappropriate for which that needed to be looked at. And again, on parliamentary oversight, surprisingly, no provision was clearly indicated or no policy direction was given as to how parliamentary oversight of the intelligence function would be exercised and for which the Committee insisted an inclusion of a clause dedicated to providing mechanisms for parliamentary oversight of the intelligence sector.

And that said, Mr Speaker, the appointment of the Minister who would be responsible for national security and, by extension, intelligence was a matter that needed serious clarity. This is because from practice in this country, referenced to Acts 526 and Act 1030, two schools of thought have existed, one school of thought that actually sought to create the Ministry of National Security and another school of thought where a Minister responsible for national security was appointed without the necessary creation of a whole bureaucracy for that function. And in order that, in the passage of this Bill, we would not come back in the shortest possible time for an amendment to be occasioned to that portion, we sought clarity and advice that we couched that provision in a way that would stand the test of time and would be able to serve those schools of thought in the event that future Presidents differ in principle.

That was agreed upon such that in the current position agreed upon in this Bill, the President would have the prerogative to appoint any Minister, to be responsible for the function of intelligence and national security: any Minister at all may be appointed. And by interpretation, what that also means is that if any President so desires that he wants to create a whole bureaucracy for it, there would not be a need to come back to Parliament to amend that provision and an Executive Instrument (E. I.) can be invoked for that to happen, to strengthen the resilience of this Bill.

That said, Mr Speaker, on the appointment of the National Security Coordinator, we saw that no direction was given as to how the Deputy National Security Coordinator should be appointed, for which we raised concerns, because there is an incumbent Deputy National Security Coordinator, and we needed to seek clarity that in the promulgation of this law, some people may not have to lose their jobs, and that was also factored in. But one of the key areas of contention was the constitutional basis for which that appointment would be taken, whether the National Security Coordinator ought to be appointed under Article 195 or Article 70 considering the political nature.

Over the years, we all know that the role of the National Security Coordinator has always been conterminous with that of the President that appointed him, even in times when we have had different Presidents from the same party or government, we have never had a National Security Coordinator retained.

So, we thought that then it would make sense for the incumbent to be appointed under Article 70, but that matter did not see consensus, and that in the subsequent life of this consideration, we will look at it and put it to bed.

And so, Mr Speaker, we recommend that the House takes this Report and supports it, for us to pass a Bill that will regulate the security sector governance of this country, particularly intelligence sector, and ensure that we have a creditable Bill, a Bill that will stand tall in the subregion and support the function of intelligence in this country to enhance our security. I thank you.

Mr Dominic Bingab Aduna Nitiwul (NPP — Bimbilla): Mr Speaker, I want to thank you for the opportunity to contribute to this Bill. I would want to first go to page 3 of the Report and look at the object of the Bill. In any analysis of this Bill, you have to start from the object of the Bill. If I were to take the Bill itself, I would have gone to look at the Memorandum of the Bill. But once I am not using the Bill, I will go to the object of the Bill and look at it.

Mr Speaker, the Government says that the Bill is seeking to provide matters relating to the National Security Council and to establish regional security councils and district councils, as well as to specify some of the state agencies responsible for coordinating and implementing government policies among others. But the Government then goes to page 2 to tell us exactly why they are bringing this Bill. And that the Security and Intelligence Agencies Act,

1996, (Act 526), was in existence for well over 24 years. And it was just repealed five years ago by a new law, Security and Intelligence Act, 2020 (Act 1030). In fact, they stated four years ago.

It says that there is a need for enactment to reflect the current policy direction of the Government. Mr Speaker, I do not think this House should allow governments to be changing security Acts because they are in government. I do not know whether I am making sense, but I do not think so. There must be cogent reason why we are changing the security architecture, but not because of them. Are they saying that in four years, when they are no more in government, the new government will then come and bring another Bill? Is that what we want to be doing? I do not think so. There may be other better reasons, but to use this as the principal reason why they are re-enacting this Bill, I think it is wrong. Mr Speaker, more importantly, they say—

Mr First Deputy Speaker: Hon Nitiwul, is there anything in the Bill or in the Report that suggests that the change is as a result of the change in government?

Mr Nitiwul: Mr Speaker, the Security and Intelligence Act, 1996 (Act 526) was in existence for well over 20 years before it was repealed by the Security and Intelligence Act, 2020 (Act 1030), four years after the operationalisation of the Act.

4:24 p.m.

Mr Speaker, there is a need for re-enactment to reflect the current policy direction of the Government.

Mr First Deputy Speaker: Yes.

Mr Nitiwul: That is what the Government is saying. That, for them, they are repealing this Act because they have a new direction and they want us to follow that direction.

Mr First Deputy Speaker: Yes, I would not have that particular problem, but you are saying that because there is a change.

Mr Nitiwul: Of course. Mr Speaker, the only reason the Government is saying this is because there is a new Government, and that it is their direction. So, I am asking, if in four years, and it will happen, they are no more in power, are we expecting a new government to also bring a new Act to reflect their direction? Is that what we are saying?

Mr Speaker, they say that the Bill envisages the National Security Council shared by the President will work directly with the Office of National Security Coordinator and the Director General of the Intelligence—and more importantly, the principal reason is that, the policy direction of the Government is to provide for a security architecture where the National Security Coordinator coordinates the activities of the security and intelligence agencies in the country. That is already the practice. In fact, even the old Bill under Former

President Jerry John Rawlings, that was the practice. Under this current Bill, that is the practice. So, they cannot say that the policy direction for which we are changing the Bill is because they want the National Security Coordinator to coordinate the activities; that is what is being done.

Mr Speaker, let me be very clear, the framers of our Constitution, and its premise was very clear that there shall be an office of a National Security Coordinator to coordinate the activities of the security agencies. So, every time, whether it is a Wednesday or a Tuesday, they meet in the Junior Common Room (JCR) to coordinate the activities; that has always been the practice.

Mr Speaker, they convene meetings in our time, every Wednesday—

Mr First Deputy Speaker: Hold it. Let me recognise Hon Ayariga.

Mr Ayariga: Ordinarily, I will not interrupt debate, but he made a statement that it is provided for in the Constitution—*[Interruption]*—No, he said it is provided for in the Constitution and that there shall be a National Security Coordinator who shall coordinate the activities. I just want to correct that there is no office of Coordinator in the Constitution. There is a secretary to the Council, but not a Coordinator.

Mr Nitiwul: Mr Speaker, I said in the Security and Intelligence Act 1996, there has always been an office of the National Security Coordinator. His duty

has always been to coordinate the activities of the security agencies. In those days, the Bureau of National Investigation (BNI), now the National Intelligence Bureau (NIB).

Mr Speaker, the research, which works directly under the Ministry of Foreign Affairs, is conducted by the NIB, which is internal, while research is external, and they also liaise with the Defence Intelligence and the Police Intelligence. During our time, every Wednesday, the heads of these institutions will meet with the National Security Coordinator, and they will coordinate the activities, and the National Security Coordinator would brief the President on all that is happening, and all the information on a daily basis is sent to the coordinator. So, the Object for which we are changing this Bill has already been catered for in the two previous Bills, so I do not know why you are doing that.

Again, Mr Speaker, let me advise that they should not and never make the office of the National Security Coordinator an agency. If the Hon Minister for the Interior is listening, they would realise that in practice, he would not want the accounts of the National Security Coordinator to be audited. If they make it an agency, they will have difficulty raising funds when there is a problem in any part of the country. Because, as a former Minister for Defence, I did not have impress, I did not have resources readily available; I could not, and there was no way I could have any resources readily available. The only place—the Hon Minister was to rely

on the office of the National Security Coordinator to immediately raise funds, within seconds, for the soldiers to move. So, it would be dangerous for this nation to make that office an agency and say that Parliament shall audit its accounts, just like what they are doing to others. I think it is a misplaced priority. If we do that, we will suffer. Take it from me. They would have difficulty because, for instance, when fuel is finished in Burma Camp and we need the soldiers to move in 30 minutes, we do not have the resources to do so. Also, they would have difficulty when the soldiers are again in Bawku, Bimbilla, Zebilla, or Wa, and the ration runs out; we would need resources to be able to immediately send money to them. They would need the National Security Office to stay as it is, to provide quick, adequate resources; otherwise, they would have problems. This has always been the practice, and it is a good practice. I do not know why they want to change it.

Mr Speaker, if they do, trust me, after one year of practice, we will change it. It should never be an agency. Why should it be? It should be directly under the President. It should serve the National Security Council, as it is currently doing, and he should report directly to the President. We should not tie the hands of the President. I think we should re-look at it. I do not think there is a need for a new Bill.

Mr Speaker, if the President has a problem appointing a Minister, he should not appoint the Minister as he has done; there is no need. If the President thinks that he would not appoint a Minister, that

is his prerogative. He should not appoint a Minister. But to bring a new Bill and change a lot of things, that would rather be to the detriment of our security architecture. I think it is not good because when I take this, and I go through the clauses one by one, and we go through these clauses and change them, in two years, we would come back here and change most of them again, because in practice, we would face problems. If we do not have a Minister for Finance who understands security, and we change this, we will have problems. Dr Ato Forson may not always be there, maybe he understands, maybe he does not understand, but I can tell them that they would face problems.

So, Mr Speaker, let us look at this. We are doing some of these things for the nation. We are not doing it because NDC or NPP is in power. We are doing it because it is the best practice. I do not know why anybody would want to do what they intend to do, unless I do not understand what the Bill itself is seeking to do. But if they do that, they would have problems.

Mr Speaker, the President is right to say that he will choose a Minister who will oversee the operations of national security. That has always been the case, until recently, when a Ministry was created out of it. Even with that, some people will choose a Minister just to oversee, just like they have chosen my good Friend, Hon Muntaka, to oversee it. It is normal. I do not think that we should be taking the Bill, ripping it apart after four years, and bringing in something that will give us problems.

Mr Speaker, let me go back to the point I made. They should not make the Office of National Security Coordinator an agency that will report to a Minister.

Mr First Deputy Speaker: Hon former Minister, you are sounding repetitive. So, conclude.

Mr Nitiwul: Mr Speaker, I am just saying that, for emphasis, they should not make it like that. It will create problems for them, the sitting President, the smooth running of the security agencies and for us. Remember that security is a daily routine; it runs every day, and it changes very quickly. The face of security changes very quickly, and we will need quick resources every time. So, if we are not careful, and we go the way we are going, we will have problems. Maybe during the Consideration Stage, we may all have to look at it, and winnow it properly, and advise the President.

Mr Speaker, otherwise, I tell them, on the surface of it, we may like it. But when we ask security experts, they would tell us that if we do some of the things we want to do, we will come back in two years to change them.

I thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Member, you have the floor.

Mr Oscar Ofori Larbi — *rose* —

Mr Abdul-Fatawu Alhasan (NDC — Yendi): Thank you, Mr Speaker, for the opportunity to contribute to the Report.

Mr Speaker, let me start by commending the Committee for putting together a comprehensive Report, for that matter. I have my contribution couched in three forms.

4:34 p.m.

The First, is on the issue of the composition.

Mr Speaker, on page 7 of the Report, specifically paragraph 8.2, which talks about the composition, it says that per clause 1(2) of the Bill, there is that strong recommendation for the expansion of the National Security Council. The Report itself admits that given Article 83 of the 1992 Constitution of the Republic, it is not possible for the expansion of the National Security Council. This is why the Report recommends a review of Article 83 of the 1992 Constitution. Mr Speaker, with your kind permission, if I may read the first line of Article 83 (1). It reads:

“1. There shall be a National Security Council which shall consist of—”

Mr Speaker, it is my humble submission that in reviewing this provision, or in amending this provision of the 1992 Constitution, instead of using the word “consist of” in order to give meaning to the call for the expansion of the National Security Council, we can then have Article 83(1) of the 1992 Constitution now amended to read, with your permission I read:

“There shall be a National Security Council which shall include...”

Mr Speaker, if we use the word ‘include’, then we have room to add more to the list. But as it stands now per the Constitution, the word there is ‘consist’, which means it is a closed door. And so, we can only deal with the list as we have it there from Article 83 (1)(a) to 83(1)(k).

Mr Speaker, the call for the expansion also says that the President must have regard to the Ghana Immigration Service, the Ghana National Fire Service and gender balance. If we do that, we are taking away the discretion given to the President per Article 83 (1)(k). After listing all the members of the Council, it says, and Mr Speaker, with your permission I beg to quote Article 83(1)(k):

“three persons appointed by the President.”

Mr Speaker, it is not for nothing that the Constitution itself will leave it open and give the discretion to the President to appoint those three persons. But now if we are saying that we should not add a member of the Ghana Immigration Service, a member of the Ghana Fire Service and consider gender balance, it means that we are tying the heart of the President. So, these three persons the Constitution has given such wide discretion to the President to appoint now seem to be a closed issue. I wish to commend the Committee because if we look at their Report in paragraph 8.2.1., they have dealt with this issue and have done so well with that.

Mr Speaker, having spoken about the composition, I wish to comment on the membership. There is the issue of the composition of the Regional Security Council and the District Security Council. There is that call that in constituting the District Security Council, the District Chief Executive (DCE) or if we like the Municipal Chief Executive should nominate the Member of Parliament (MP). So, the MP should be a member, but the Member of Parliament should be nominated by the DCE. I feel that this will not be the best for the country because per the hierarchy of things, I do not see how an MP of a constituency will not have to be appointed by his DCE to serve on the Council. If there is a need for the MP to serve on the said district council, then there must be a way of appointing him. Alternatively, the Bill must simply say that the MP must serve on the council, but not to give that power to the DCE or the MCE to appoint the MP to serve on the Council. Mr Speaker, I think this is not best for the country.

Mr First Deputy Speaker: Hon Member, have you seen the amendment proposed by the Committee and attached to the Report?

Mr A. Alhassan: Mr Speaker, I am speaking directly from the Report.

Mr First Deputy Speaker: Please, you have to look at it carefully, you would realise that the basis of your argument is flawed.

Mr A. Alhassan: Thank you, Mr Speaker, I am guided.

The other issue regarding the Committee's Report is the fact that there seems to be a rejection of the call to have the MP represented at the District Security Council. The simple reason is that it will create some political interference. I do not think the inclusion of an MP in the District Security Council will necessarily create political interference because the MP is also part of the security architecture of the district or the constituency. If we have the MP represented, at least it will even help to ensure that the one who has the mandate of the people is part of the council that takes decisions affecting the security of the people. It is my humble appeal that the provision that allows MPs to be represented must be maintained and should not be rejected.

Mr Speaker, the last part of my argument is on the call to have a Deputy National Security Coordinator. I think this call is in the right direction, and I think it can come under Article 195 of the 1992 Constitution, which gives power to the President to appoint persons to act in positions. It is my humble appeal that we should include and have it stated in the Bill the position of the Deputy National Security Coordinator, and that power should be given to the President to appoint.

Thank you, Mr Speaker.

Mr Oscar Ofori Larbi (NDC — Aowin): Thank you, Mr Speaker, for giving me the opportunity to speak to the Committee's Report. The fear that my Senior Colleague, Hon Nitiwul, is admonishing is exactly what this Bill is

seeking to cure. That is why this Bill is being brought to this House for Members to support it so that that fear will not be in existence. If we look at Security and Intelligence Agencies Act (Act 526), which has been in existence for over two decades, and the Security and Intelligence Agencies Act, 2020 (Act 1030), which has been in existence for five years, these are the two main Bills that we have drawn best practices from to come up with this Report. That is going to cure his fear. I am happy the he said all that we are seeking to do is already in existence, so what is his fear again?

Mr Speaker, when we look at the Committee's Report, that is why we did not accept the fact that Members of Parliament should be part of the Regional and District Security Council membership. We did not accept it. *[Interruption]* Then the Hon Member has not gone through the Report. We did not accept it for Members of Parliament to be members of the Regional Security Council (REGSEC) and the District Security Council. So, Mr Speaker, what this Bill seeks to do is for the Bill to stand the test of time and be more resilient. If we look at the cohesion that happened at the Committee level, we — *[Interruption]*— The synergy— *[Uproar]*

The synergy at the Committee level was so superior. Yes. *[Interruption]*

Mr Speaker, the Winnowing Committee members were there, there were legal brains, and a lot of expertise went into the formulation of this Report

so that at the end of it, when it comes to the floor of the House, nobody will have the laxity to say this Report cannot stand the test of time.

Mr Speaker, if we look at paragraph 8.6, the Committee's Report conforms with the 1992 Constitution, which is the supreme law of the land. Anything we came up with, we took the root from the 1992 Constitution so that at the end, it will be more formidable to stand the test of time. So, I urge Hon Members to support this Report, so that at the end, the Bill we are going to enact will stand the test of time. Irrespective of wherever we find ourselves in the political divide, be it in opposition or in government, we will stand firm and fear no evil.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Well, I intend to take one more from the Minority Side, and then come to Leadership.

Yes, Hon Dr Kabiru?

4:44 p.m.

Dr Abdul Kabiru Tiah Mahama (NPP — Walewale): Thank you very much, Mr Speaker, and let me thank my senior Colleague for yielding to me. Mr Speaker, without the risk of sounding repetitive, I need to state for emphasis that the Memorandum accompanying the Bill is totally different from the content of the Bill.

Mr Speaker, the Bill proposes far-reaching and sweeping reforms and amendments to (Act 1030). Those amendments are not minor amendments.

In fact, they are fundamental amendments to (Act 1030), including the abolishment of the office of the Minister for National Security, because (Act 1030) provides that there shall be a Minister responsible for National Security. This proposed amendment seeks to abolish that without any explanation or rationale for such a decision in the Memorandum.

There is also a proposal in this particular Bill to make certain reforms to the functions of the National Security Coordinator. These are fundamental amendments that we think that, if they wanted to do that, the Memorandum accompanying the Bill should have specified clearly what mischief this current Bill is supposed to cure in the current architecture of the national security of the country. But there is none of such in the Bill, Mr Speaker, and I think that it did not help. I have read through this particular Bill and I have read the Memorandum accompanying the Bill, even as a non-Member of the Committee, and I think that that first issue would have to be addressed.

Mr Speaker, there is also an issue. If we read section 18 and 9 of (Act 1030) and section, clearly, these two provisions in the current law have not been attended to in the current Bill and it is a major issue that I think the Memorandum should have attended to, and the current Bill should have also been addressed.

Mr Speaker, if we further read clause 17 and 11 of the proposed Bill before this House, they have merged certain

functions, and they are assuming that the functions that were performed by the internal security and the external security are almost the same. This decision to merge these particular functions is very dangerous for us, because the role of NIB and the role of the Research Department of the Ministry of Foreign Affairs are totally different. To assume that they perform similar functions, merge their functions and not to reflect on the functions they hitherto to perform under sections 11 and 17 of (Act 1030) is problematic.

Mr Speaker, I will need to further draw your attention to clause 18 of the proposed Bill. Clause 18 provides for the appointment of the Director-General. With your permission, if I may read:

“The President shall, in accordance with Article 195 of the Constitution, appoint a Director-General as head of the Internal and External Security agencies, referred to in paragraphs b and c of section 12.”

Mr Speaker, we have the Director-General to be appointed in accordance with Article 195 of the Constitution, Mr Speaker. But in my view, the Director for BNI and the Director for the Research Department are supposed to be independent and distinct positions held by those people as separate authorities.

Having one person being the Director-General for the Internal security and the same person as the Director for the external security is too much work

for such a person to have. National security has serious issues that if we do not have every single “i” dotted and every single “t” crossed, we will get it wrong. We are facing a recent threat of extremism. These extremist activities are not for one person to be cloaked with power, and they think that person is able to do the work of National Security.

As a matter of principle, I am against the fact that the Minister for National Security is supposed to be a Minister assigned by the President. There must be a dedicated Minister responsible for National Security.

They argue that they want to rationalise costs. They say that the President has the authority to appoint anyone to be the Minister for National Security. Mr Speaker, I argue that the fact that Hon Muntaka was appointed as a Minister for National Security was in violation of (Act 1030). The Act is very clear that there shall be a Minister appointed who should be a Minister for National Security. It is not for the President to decide that he wants to give the position of Minister for National Security to someone with other responsibilities. If the President wants to go by the dictates of this particular Bill, he should have appointed a different Minister who will be responsible for National Security. National security has to have a Minister distinct from the Minister for the Interior.

I would further comment on the issues about the functions of the National Security Council. Article 83 of the Constitution has clearly provided the

functions of the National Security Council. In this Bill, those functions are supposed to be complete replicas of those particular provisions in the Constitution. There are identified mismatches between Article 83 of the Constitution that provides for the National Security Council and their functions, and then the provisions in this Bill that are dealing with the functions of the National Security Council. I am sure that when we come to the Consideration Stage of this particular Bill, we will point out those specific mismatches, because the language of the Constitution is clear, and it should be replicated in the Bill if we want to have the Bill consistent with the Constitution of the Republic of Ghana.

Mr Speaker, the last issue I would want to draw your attention to is the changes of the functions of the Director-General in clause 19 of the Bill. Apart from the fact that I argue and I make the point that it is not proper to have the Director-General be responsible for both Internal and External Security, the functions under this particular proposed Bill are actually also limited in their scope as compared to (Act 1030). The fact that we have the function of the Director-General of the Internal and External Security being limited, I think that it is doing much damage to our security and the security of the Ghanaian people. We cannot use this Bill to limit the powers of the President as contained in Article 83 of the Constitution. We cannot again use this Bill to abolish the Office of the Minister for National Security, because (Act 1030) was clear. The reason we made provision for that

was we thought national security issues are serious issues and that we needed a dedicated Minister who has complete attention for national security issues.

Mr Speaker, with these few words, I would want to thank you so much for the opportunity to contribute to the report.

Mr First Deputy Speaker: Yes, I can still give the floor to the Hon Majority Chief Whip. Majority Chief Whip, I saw you on your feet. Do you want to contribute?

Mr Dafeamekpor: Mr Speaker, I was on my feet just to draw attention that Hon Kabiru appears to be repeating himself. Fortuitously, he concluded his comments. We are providing a guide.

Minority Leader (Osahen Alexander Kwamena Afenyo-Markin): Mr Speaker, thank you for the opportunity to add my voice to the debate on this Bill.

4:54 p.m.

Mr Speaker, Hon Nitiwul took us through some issues, and my Colleague, who just debated further, highlighted some points I have here, and I would not repeat all of the points they have already argued.

Mr Speaker, it is important to underscore one fundamental issue that the Memorandum before us does not provide any empirical evidence to suggest that Act 1030 has failed. It appears that this Bill is more founded on partisan political interests than a National Security interest for good

governance. Mr Speaker, without doubting the competence of my own Senior, Hon Muntaka Mohammed-Mubarak. I think that he has been overburdened, handling the Ministry of the Interior alone, with all the agencies there can take away all his energy. Then he has a further oversight responsibility as the Minister for National Security.

Mr Speaker, is he a Minister for National Security responsible for the security of the state, or is he just there for the mere presence? Is he dormant or active? To what extent is he in charge of those responsibilities as a Minister for National Security? Mr Speaker, I think that our democracy has come of age. We, as the political actors, must begin to move away from those parochial approaches to governance. They are in power today, so they see everything to be expedient. We are changing certain fundamental principles because I overheard somebody saying somewhere that “we are in power”. It is not enough to say they are in power, so they would change the architecture of the security of the state, even when it is not going to help the country.

Mr Speaker, we have a National Security Coordinator who is not going to be responsible to Parliament. I recall that in the enactment process for Act 1030, the key argument by the then opposition, the Minority in this House, was to the effect that bringing in a Minister for National Security to be appointed as a *bona fide* Minister for that institution of National Security would help with that interface between the people and government. And Parliament can

summon such a minister to answer Questions and explain matters.

Mr Speaker, it is the reason Parliament itself, in its new rules, created a new Committee for intelligence; the Committee on Security and Intelligence. We even went further to say that to be a Member of that Committee, one must take an oath because of what may come before them. So that Committee will not be one of those Committees that we are working in and acting partisan, because you are going to receive sensitive information, sensitive intel that may affect the nation if you disclose. So, we created an architecture where the Minister will report to Parliament, work with our Committee, and then ensure a seamless relationship.

Mr Speaker, what this Bill is doing is to do away with all the gains we have achieved over the last four years. By the way, how is the Coordinator to be appointed? We are not referring to Article 195 of the 1992 Constitution, where the president would appoint anybody to sit there as his Coordinator. In ministerial appointments, the 1992 Constitution provides that the minister must come through Parliament. In Parliament, there are enactments like the Office of the Special Prosecutor (OSP), and Parliament vets the Special Prosecutor. Why would it be that the National Security Coordinator would be a law unto himself and would be a lord who is not answerable to anybody? We are starting it right from here. If we create ambiguity in enactments —

Alhaji Muntaka — *rose* —

Mr First Deputy Speaker: Minority Leader, the Minister is on his feet. Let me recognise him.

Alhaji Muntaka: Mr Speaker, I want to cut my Colleague, the Minority Leader, on a point of order to say that he is misleading this House. Because we have operated from Act 526, as mentioned, for 24 years, and equally operated under Act 1030 for four years. That is 28 years. Both Act 526 and Act 1030, the Coordinator is appointed under Article 195 of the 1992 Constitution. So, this argument he is making is, with the greatest respect to him, something that we have been practicing. Then the issue about if somebody is responsible for National Security will derail all the gains that have been made. Since we started a year and a few months ago, I have been designated as the Minister, I have responsibly been in this House to answer Questions, and I have gone to the Committee to give briefings. I have done everything that this House has ever wanted any Minister for Security to do. Yet, I have just been given only an oversight responsibility.

So, it is not something new or extraordinary that is going to weaken Parliament. If he cares to know, he should look at the Committee's Report. I do not know whether he has taken time to go through. He would have seen that in the Committee's Report, there is a new addition about how this House could place an oversight on the Security and Intelligence sector. So please, I think my Colleague should switch to whatever contribution that he had made, but he should not create an impression or

mislead the House as if something untoward is coming. What we are coming to do is not much different from what has existed in the past.

Thank you, Mr Speaker.

Osahen Afenyo-Markin: Mr Speaker, before I go on with my submission, let me register this protest. It is unacceptable for the Hon Minister, who has his own opinion on this matter, to smuggle it in under a point of order. He has an opinion; he should state it when the time comes. When we are done, he, as the Minister, has every right, unfettered, to make his points known. And any point of disagreement with my submissions, that would be the right opportunity to do so. At least, let us be fair with each other.

Mr Speaker, my point is that in the existing dispensation, we created that National Security architecture and made it a Ministry. Under Act 1030, a ministry was created, and a minister was made responsible for that sector, who was to report to Parliament, just to ensure that there is a seamless relationship with Parliament. Mr Speaker, this new enactment, what is being proposed, so much power is being given to the Coordinator. It is not clear how his powers are going to be fettered. My submission is that if they give such powers to the Coordinator and do not provide for a clear path of responsibility, accountability, and oversight, it becomes problematic for them as a Government. When the rights of citizens are being abused, the man will come and tell us that, it is in the name of National

Security, or it is because he is relying on intelligence.

5:04 p.m.

Mr Speaker, but if we bring clarity to the issue, it becomes difficult for such people to, as it were, take advantage of the law to abuse the rights of citizens.

Mr Speaker, if one goes through the Memorandum of Understanding, it does not also explain how the so-called duplication concerns with the existing institution will be addressed in practice beyond the general coordination language and if one goes through clause by clause, they do not address the issue of duplication. So what duplication are they addressing?

Mr Speaker, if we go through the Bill again, it is clear that the measurable gaps in coordination that are supposed to be documented are not found. Whatever gaps that, according to the Minister, have been identified, it is expected that in this Bill, we find them. So, there are no said documented gaps.

They are not telling us that in the existing legislation, these are the gaps we have identified and therefore they are introducing these new clauses to address them. Nothing like that is said.

Mr Speaker, I am interested in Article 18, Rights; no additional protection is introduced to safeguard the rights of citizens when they are violated. We cannot have a Bill of this nature when we know that this Bill would deal with human rights issues. Yet we do not

safeguard them. We allow so much ambiguity. Then by the time a citizen goes through the judicial process, he would have lost a whole lot.

Mr Speaker, when we give them the power to even freeze people's accounts and assets and we do not provide a procedure that would allow the right thing to be done—We heard about what happened to the former Governor of the Central Bank. Somebody goes to his house and says that I had a court order. Later, when we asked for the court order—we all know about the *ex parte* application.

Mr Speaker, we should not wait to get into opposition before we find everything wrong with the law. The Minister in charge of National Security, who is sponsoring this Bill must safeguard the rights of citizens. It is their fair right. We know what is happening. In the name of National Security, rights are abused. At this point, as the people's representatives, we are enacting the law and we do not want to put in these safeguards. It will come back and haunt us.

I believe that at the right time, during consideration, we would look at it. But it is important that I bring this to the attention of the Minister and my respected Colleague, the Chairperson of the Committee, so that we fully tackle this. The provisions in there are insufficient. I respectfully submit.

Mr Speaker, I am also concerned about the oversight mechanisms in this new law. This framework does not

appear to strengthen oversight mechanisms. Here, I talk about Parliament. The Committee on Security and Intelligence is not giving a clear, defined role in ensuring proper oversight.

Mr Speaker, not too long ago, we heard about the Attorney-General and Minister for Justice in a public interview talking about some operational funds and how that has become a matter of some litigation in court. As a House, do we not think that this is the time to at least strengthen Parliament's oversight on some of these matters?

This is so that the Committee, whose Members have taken an oath, can interrogate some of these things. Bearing in mind the essence of time, because Mr Nitiwul argued that issue. That, much as we want to put in place some measures, we should also ensure that we do not delay the release of funds for operations. The system that we put in place must be such that we balance oversight with prudence when it comes to operations. Hon Minister, that, in my view, is also missing.

Mr Speaker, let us look at Article 21 and 23, conjunctively with 18. Articles 21 and 23, are very fundamental. We are dealing with issues of administrative justice. How sure are we that this Bill will not give the security agencies that continued unfettered right to be using *ex parte* applications, in the name of national security to continue to abuse the rights of citizens, especially those who do not have the means to employ lawyers to defend them?

Mr Speaker, many of our citizens are poor and cannot afford legal representation. For these citizens, they must be in our contemplation at an important juncture like this, while we are enacting this law. If we do not bring clarity in this, we would be creating problems for the many who may not have the means to get high class legal representation. What happens to them?

They will go to the National Investigations Bureau (NIB) and then they would be told to write statements and get your bail. They would write and then the next moment they would go to court and they would tell them that, this is what he said by admitting to the offence and is guilty as pleaded. He does not have a lawyer and then the next moment he is in jail.

There are many more of such cases. I am a practitioner in our court and I know many situations in which people do not know about their own rights and our security agencies have relied on laws to deny them their rights. Yes, Majority Chief Whip?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, the Minority Leader is a Senior Member of this House and he knows that he cannot depart from the terms of the Report and move into anticipation. He is clearly in breach of Order 125(1). He cannot do that. He is anticipating what will happen tomorrow and the day after. He cannot do that. Our rules forbid anticipation. He cannot be arguing in anticipation in respect of a Report, the terms of which are very clear before him. He cannot be

arguing in a preemptive manner, anticipating that this or that would happen.

Mr Speaker, he is a senior Member; he is Leader and we learn from him. He should stay within the terms of the Report.

Mr First Deputy Speaker: Hon Leader, take note of the observation and the fact that clause 29 to 31 is a repetition of Act 1030.

Osahen Afenyo-Markin: Mr Speaker, with respect to the extent that my Hon Colleague suggests to this House that I am going outside of the issue before us, I would like to respond for *Hansard* to also capture the same.

Mr Speaker, I strongly disagree with him. At this stage of the lawmaking process is where all issues and concerns are expressed. The matter I raised has to do with what happens in our courts. I am saying that, I have witnessed situations where rights are abused because such citizens who came into contact with the security agencies in one way or the other did not have access to representation.

Mr Speaker, as a result of that, they suffered some injustice. All I am saying is that, if we are enacting, it is important that we bring clarity and safeguard the rights of citizens. We should provide for these, so that the security agencies as part of their own administrative duties would be guided.

5:14 p.m.

Mr Speaker, until we ensured that citizens were not detained beyond 48 hours, until all of us spoke about it, that this is enshrined in the Constitution, there were times that citizens were detained by security agencies beyond 48 hours until all of us spoke about it that this is enshrined in the Constitution. There were times that citizens were detained by security agencies beyond 48 hours.

Mr Speaker, because the law is clear and unambiguous, such abuses have been limited. Even so, such abuses have not stopped. I would want to say that the over-concentration of power in the appointment process, without Parliament having the opportunity to vet, is a matter of serious concern that this House must look at, even as we go into the Consideration Stage.

Mr Speaker, two, I have also identified a weak accountability mechanism. It is likely dominated by Executive oversight rather than parliamentary oversight, and I have stated that and I will not repeat it.

Mr Speaker, I also acknowledge the fact that there must be some level of secrecy. I agree, national security issues must not be made public. However, I need to repeat for the record that to the extent that Parliament itself in its wisdom has enacted its regulation that creates a new Committee responsible for national security, there must be unfettered disclosure to the extent that Members on that Committee have taken oath.

Mr Speaker, looking at this enactment, it appears again that there is some broad, rather loosely framed, intrusive powers and weak warrant regime. I would delve deep into this when we get into the Consideration Stage. I have already emphasised what happened not too long ago with this warrant for search and all of that. This law does not address it fully, and it appears that what we are seeking to do is to create a much more intrusive institution. We are allowing a new warrant regime, complicating matters, and this would further affect citizens, especially political witch-hunting.

Mr Speaker, we should also be mindful of the politicisation of the regional and district security councils. Those regional security coordinators and the district security coordinators, if we go through the enactment, we do not define their essential qualification for appointment. Are there going to be party members who would be given “jobs for the boys”? For instance, they are appointed district security coordinator, or regional security coordinator, when they see somebody’s cassava in a pick-up, they go and chase the person and say that for national security reasons, we stopped you. When they see that somebody has bought his new car, they will chase the person and ask where the person got the money to buy the new car.

Mr Speaker, I say some of these things from experience. Just about a month ago, my own pickup was chased by a so-called regional security coordinator, and arrested the driver, and said that he has information from

national security. Meanwhile, it was not true. When he realised that the car was mine, he said, he was sorry. Meanwhile, he had arrested the guy, frustrated him, and I do not want to say he extorted money from him for not having a registered car.

Mr Speaker, if such a person was a professional, and by enactment, has gone through the vetting process of appointment, and knows what he is supposed to do, he would not do such a thing. So this Bill must also look at that carefully, and not just think that because there is the need to have certain positions filled, anybody at all should be there.

Mr Speaker, I shall conclude by saying that this Bill does not reform the security architecture of our country, it rather entrenches it and worsens it. The Bill preserves the old problematic architecture without substantive reform, carrying over existing appointment and practices. For these reasons, I believe that though the Committee has done a good work at consideration, there will be the need for the Minister to sit with us as a House, do further winnowing, and incorporate the major concerns raised by the Minority on this Floor, so that, in the end, we would have a Bill that is citizen friendly, a Bill that ensures transparency, a Bill that allows Parliament to scrutinise and properly oversight the work of the security architecture of our country.

Mr Speaker, that said, I shall resume my seat without more. Thank you.

Mr First Deputy Speaker: Yes, Majority Leader?

Majority Leader (Mr Mahama Ayariga): Mr Speaker, in private practice, the way to increase your fees is to speak copiously in court. Even if nothing is said, just speak copiously in court. Because as for the client, when they finish, all they would say is, did you see the way my lawyer was talking? *[Laughter]* The other lawyers in the courtroom know that he said nothing. I am saying this because I have listened to all that my Friends on the other Side have said, and I cannot hear anything. I cannot hear anything and the reason I say I cannot hear anything is simple. We all know that under the New Patriotic Party (NPP), in 2020, they brought a Bill to this House, ostensibly to revise the Security and Intelligence Agencies Act, the existing law then.

Mr Speaker, in the process, they enacted an office, which is the Office of the Minister for National Security and therefore, impliedly, made it a permanent existence.

Mr Speaker, even the Constitution shies away from enacting ministerial portfolios. Apart from the Attorney-General and Minister for Justice, no Minister is enacted by legislation. Ministries are created by Executive Instruments, and then that necessitates the appointment of a Minister to be responsible for that ministry.

Mr Speaker, by enacting the Office of a Minister for National Security, they were tying the hands of every president, so that he must appoint a Minister for National Security. In the process, they had unwieldy size of government. How

many Ministers did they have? They had 125 Ministers. They had 125 Ministers and Deputy Ministers for a small country like ours, when a country like Australia, with a bigger economy, has just about 30 Ministers.

Mr Speaker, the National Democratic Congress (NDC) promised that when we come to office, we will downsize, we would cut down the number of Ministers. So, when we came into office, we indeed cut down the number of Ministers and among the Ministers that we decided to guillotine, was the Minister for National Security.

5:24 p.m.

Then the issue arose in this Chamber. The Rt Hon Speaker Alban Sumana Kingsford Bagbin raised the issue that there is a legal problem. There is an Act that enacts the office of the Minister for National Security so we cannot appoint ministers without appointing a Minister for National Security.

So, the fundamental thing about this Bill is to revise the existing legislation and take out the imposition of a Minister for National Security. That is the fundamental objective of this Bill. Take the Bill and go through it properly and you will see that all that the Bill seeks to do is to abolish the office of the Minister for National Security, the functions assigned to the Minister for National Security and the establishment of the Inter-Ministerial Council for National Security because all these three main items—*[Interruption]*—They are not.

Mr Speaker, that is the idea that we are pursuing which is taking out the office of the Minister for National Security. If we do that, we will essentially be reverting to the legislation that existed before Security and Intelligence Agencies Act, 2020 (Act 1030) was enacted. That is the fundamental objective. Of course, in the process, advantage has been taken of the proposal before this House to also add and revise a few things based on the experience that we have obtained working these two legislations.

So, I am surprised that the impression is created that there is something wrong being done and we do not know what we are about, and that the Bill is inadequate and that there is nothing wrong—There is everything wrong with enacting an office of the Minister for National Security. We have a Minister for Health, it is not enacted; we have a Minister for Education, it is not enacted; we have a Minister for Roads and Highways, it is not enacted. Those ministers are not enacted. It is the ministries that are enacted and it is the agencies under the ministries that are enacted. So, you have Highways, you have Urban Roads, you have Ghana Health Service, you have Ghana Education Service, you have all of them enacted under the ministries, but the ministry itself is simply created by an Executive Instrument because Presidents can decide to realign and change it. They do not need to come to Parliament to realign them.

What you did here was to force the hand of a President to appoint a Minister for National Security. It was a wrong

thing for us to have done as a Parliament. Well, we were all in Parliament; they proposed it but we were here and we voted. So, I am saying that was a wrong thing for us to have done and this historical wrong has to be corrected, and that is what we are doing today; we are correcting the wrongs of the NPP Government. We are cutting down the number of ministers; we do not believe in large-sized governments. Large-sized governments waste public money. The taxpayer must get value for money and that is the object of this Bill, nothing more.

Mr Speaker, the issue of Director-General of Intelligence as indicated by Hon Kabiru Mahama, I tried very hard to understand where he was coming from and where he was going. But I know that all the Bill seeks to do is to just redesignate it as Director-General for Internal Security and Director-General for External Security. Internal security is the NIB and the external security is the Research Department and they already have directors. If you just redesignate the titles to fit what modern nomenclature is, I do not see anything fundamentally wrong about that. Why should we be splitting hairs about just redesignating titles of offices that already exist. We are not creating the offices. Mr Speaker, when you go to the issue of the coordinator, yes, coordinators have existed from the beginning as a matter of practice. When the first legislation was being passed to govern national security, it was enacted. All subsequent legislations have kept the Coordinator of National Security functioning basically the same.

Now you cannot say that we are creating a coordinator who is politically unaccountable. That is obviously not true. We know the normal accountability mechanisms under our Constitution. First and foremost, we can hold a security and intelligence agencies accountable through the process of budgeting for them. Their budget is approved by this House. They bring the budget proposals here and we approve it; every money they spend, we approve it. And the Committee can always invite the Minister responsible for National Security to come and answer questions, and the Hon Minister kept repeating that. He has been coming here to answer questions. Beyond that, he has been appearing before the Committee of Parliament to provide briefings on security matters anytime he has been invited. Nothing is going to be sacrificed when it comes to political accountability of the security and intelligence agencies. So, I do not know where the argument is coming from, that we are about to compromise the human rights of citizens, that they will no longer be politically accountable under what arrangement? Because the existing arrangement clearly in the last one year and two months have worked in such a way that no political accountability has been compromised. So, I think that that argument also falls flat on its face.

The argument about the warrants and freezing powers have always existed in their own legislation which we passed in this House, Act 1030. There were the same provisions. Nothing really fundamental except a proposal that sometimes, by the time you go and apply

for a warrant to freeze an account, it takes a second to move the money from that account; it takes just the click of a button because everything is electronic. Somebody can actually just use his or her cell phone and transfer all their money. That is where banking has reached now. So, when a security intelligence agency is interrogating a suspect and suspects that they have moneys in an account, by the time they go to the court and apply for a warrant and apply for a freezing authority, the account is drained; money is transferred. And so, there is a suggestion that at a certain level in the leadership of the intelligence agencies, they should be able to authorise such actions and within a week, go to court for the court to confirm or set it aside. We have the same in the Office of Special Prosecutors Act. Why grant Office of Special Prosecutor those powers and deny the other intelligence agencies who are also doing investigation to enable prosecution deny them the same powers? So, there is no real threat or danger.

As for chasing pickups *et cetera*, we did not start chasing pickups today. I know Colleagues on the Majority Side who are Ministers of State who were stopped in public and their car seized from them. It happened. I am not saying that it is right. I am not saying that it should be allowed to happen or that it should continue, but my argument is simple: how does that bear on the provisions of this Bill? There is no bearing. If they want to complain about their pick-up vehicles being seized, they can please complain. But they should not use this Second Reading as an opportunity to complain about their pick-

up trucks that were stopped. Why did they not report to the police?

5:34 p.m.

Why is he reporting to us in Parliament? *[Laughter]* Mr Speaker, let me thank Hon Colleagues for a very spirited debate, but just to indicate that we bring this Bill out of necessity. We want to remove all the provisions compelling the establishment of the Office of the Minister for National Security, and then maintain what has always existed, which is the President to designate a Minister to exercise oversight over the security and intelligence agencies, and then through that person, this Parliament can hold that whole sector accountable.

Mr Speaker, I think that this is commendable. The Report effectively captures the issues. They have considered many things that have been debated. The issue of Members of Parliament being on District and Municipal security committees were considered. I am a member of the committee as well as the Minority Leader, and very strong arguments were made on why we should not have Members of Parliament sitting in the District and Municipal security council. People have different views about that, but I think that as a Committee, from what I see in the Report, the conclusion is not to encourage a thing like that.

Mr Speaker, on that note, I want to thank the Hon Minister for moving the Motion, and the Chairperson for seconding and presenting the Report, and

urge Hon Members to vote for the adoption this Report. Thank you very much, Mr Speaker. *[Hear! Hear!]*

Question put and Motion agreed to.

Security and Intelligence Agencies Bill, 2025 accordingly read a Second time.

Mr First Deputy Speaker: Yes, do we move the consequential Motion numbered 25, and bring it to a Consideration Stage?

Mr Dafeamekpor: Mr Speaker, I believe that we will do that tomorrow, but we want to take the Motion numbered 21.

Mr First Deputy Speaker: The Motion numbered 25. *[Interruption]*

Well Hon Members, the decision is to refer the Bill to the Winnowing Committee at Consideration Stage. Without moving the procedural Motion, we cannot get to Consideration Stage where I will refer the Bill to Winnowing Committee. That is the essence of it.

Osahen Afenyo-Markin: Mr Speaker, with respect, I just need clarity. The applicant prayed the Chair for Motion numbered 21. That was the application and that is why I want clarification. He said we should move to Motion numbered 21. So, Mr Speaker, I just want to be guided.

Mr Dafeamekpor: Mr Speaker, indeed, yes, I prayed that we take Motion numbered 21, but the decision is that the

Bill will have to be referred to the Winnowing Committee and so, Motion numbered 25 will have to be moved so the Speaker can give the direction referring the Bill to the Winnowing Committee for consideration and report.

Osahen Afenyo-Markin: Mr Speaker, with respect, I want to be on the same page with the Majority Chief Whip. His application was to the effect that we should take Motion numbered 21 and now he has changed his mind to say that we need to do Motion numbered 25 and I do not see the rule upon which he mounts the Motion numbered 25. He says that there is a Motion 25 and he is mounting his application on some rules of this House. Mr Speaker, it is important for the Majority Chief Whip to specifically refer to the Order in the rules book upon which he mounts his application. We are interested.

Mr First Deputy Speaker: Hon Members, with all due respect, if you look at Standing Order 168(1), and if I may read:

“Winnowing

168. (1) Where a Bill has been read a Second Time and substantial amendments have been proposed and published on the Order Paper, the Speaker may refer the proposed amendments for winnowing.”

And by the *Order Paper*, we have a substantial amendment. That is the reason for which I want to refer the Bill to winnowing.

Osahen Afenyo-Markin: Mr Speaker, I do not have a problem with that. I have seen the Motion numbered 25 and I believe that this winnowing must be done. Because I have some amendments myself that I would want to discuss it at winnowing. But the issue here is that the applicant said Motion numbered 21 and the impression he created was that Motion numbered 21 had a relationship with Motion numbered 25. That was the impression I got and the reason I asked that he should clarify.

Mr Dafeamekpor: Mr Speaker, in all humility, it does appear to me that the Minority Leader was not paying attention. Because when I prayed Mr Speaker for Motion numbered 21 to be taken, the decision for Motion numbered 25 to be taken was from the Chair. So, my duty was to be guided. So, I had no obligation to mount that application based on the rules. In any case, invoking Order 168 was not necessary. The Speaker had already given a direction so we ought to follow. So, if he had paid full attention, he would have realised that the arguments he was making was a journey to nowhere. The Speaker has already directed that as a result of the decision that we were referring the Bill as it is to the Winnowing Committee, Motion numbered 25 will have to be moved and so would it be. So, it was absolutely not necessary for you to take the path that you are taking with all due respect, my Leader.

5:44 p.m.

Osahen Afenyo-Markin: Mr Speaker, the Majority Chief Whip knows that I am his Senior in this Chamber. So even if he

disagrees with me, Mr Speaker, as you would normally entreat us, he should find an amicable way of dealing with disagreements. But if he says that I was not paying attention to him—

Mr Speaker, let it be on record that sometimes when I disagree with you, and you draw my attention to the fact that there is a better way, we do the right thing and we reconcile.

Mr Speaker, he is our junior. You and I came into this Chamber before he did. Therefore, he does not disagree with his senior and then say that the senior did not pay attention.

Mr Speaker, there are ways to manage our seniors in this House, especially now that he is left alone. His boss has left him, and if he does not get the appropriate cooperation, he knows how difficult life would be.

So, Mr Speaker, he is advised.

Rev Fodjour — rose —

Mr First Deputy Speaker: You can see me for your guidance. You said you needed my guidance, and I say you can see me for your guidance. So, I will call on the Minister to move the Motion numbered 25.

MOTION

Suspension of Order 169 (1)

Minister for the Interior (Alhaji Mohammed-Mubarak Muntaka) (MP): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 169(1) of the Standing Orders which requires that when a bill has been read a second time, the Bill shall pass through a consideration stage which shall not be taken until at least two sitting days have elapsed, the Consideration Stage of the Security and Intelligence Agencies Bill, 2025 may be taken today.

Mr First Deputy Speaker: Hon Members, Motion moved.

Any seconder?

Mr Dafeamekpor: Mr Speaker, I rise to second the Motion.

Mr First Deputy Speaker: Hon Members, Motion moved and seconded. It is for the consideration of the House. This is a procedural Motion.

Question put and Motion agreed to.

Resolved accordingly

Mr First Deputy Speaker: Accordingly, the Security and Intelligence Agencies Bill, 2025, is at Consideration Stage.

Hon Members, in view of the volume of the amendments on the *Order Paper*, I intend to refer the Bill to the Winnowing Committee.

Hon Members who have proposed amendments to the Bill should endeavour to appear before the Winnowing Committee and make their inputs at the Committee to ease the workload at the Chamber so that the proposed

amendment will be agreed and disagreed to, and if possible, integrated into the Bill and brought to this House for easy consideration.

I so direct.

Yes? Can we then move to—

Mr Dafeamekpor: Mr Speaker, I rise to seek your guidance regarding the time frame. If the Winnowing Committee may be directed to return and say—

Mr First Deputy Speaker: Well, that depends on the Chairperson of the Winnowing Committee as well as the Minister who is shepherding the Bill.

Mr Dafeamekpor: Mr Speaker, the problems we have now is that we have a lot of referrals, and because we do not have time frames for the Committees to work and return with the Report—

Mr First Deputy Speaker: Well, so long as I am concerned, there is no Bill before the Winnowing Committee apart from this referral. So, subject to the availability of the Minister and the Chairperson, they can even start winnowing tomorrow. You know the proposers of the amendment, so the Winnowing Committee should do well to invite them to come and justify their proposal before the Committee.

Yes, Hon Nitiwul?

Mr Nitiwul: Mr Speaker, I think there were two legs to my issue, but you have addressed one of them. I wanted to

draw your attention to the fact that some of the amendments may be spontaneous because of the debate, but you have addressed that. If there is a debate and there is a consensus in the House, the amendment may not have been sent to the Winnowing Committee, but I think that has been addressed.

The second issue has to do with the point you wanted to raise, but I do not know whether it is the right time to do this, since a lot of the items that we see were brought in the explanatory memorandum, and we have completely departed from it. So, I do not know if the Minister is completely looking at it from that angle as well. When we bring a Bill—

Mr First Deputy Speaker: Hon Nitiwul, we have passed the stage of the Second Reading. So, having passed that stage, the Bill is now at the Consideration Stage, so whatever proposal you have for the Bill, do so. You will be invited by the Winnowing Committee to justify it, and when it is agreed upon, it comes here to be integrated as part of the Bill.

Mr Nitiwul: I fully understand, and that is why, if we had not put that question, I am sure that this remark from you would not have come. You know that, which is why you asked him to see you privately. He was going to raise that matter, and it is a serious—

Mr First Deputy Speaker: Well, if what you are going to raise is a matter that has gone into Second Reading, or has gone into the Bill, then I am not

ready to take it because we cannot open a debate for Second Reading.

Rev Fordjour: No, Mr Speaker, what I seek to bring to attention is the fact that from the submission of the Minister in respect of the policy direction accompanying this Bill, it is a complete departure from the—

Mr First Deputy Speaker: Hon Member, we have already debated Second Reading, so kindly resume your seats.

[Uproar]

Hon Members, the Chair should not be taken for granted. Certain things are very annoying. So, if I keep on admonishing you, you take the admonishment.

Hon Members, it is not always the case that we should be taking liberty for licence. How long do we debate a Second Reading of a Bill?

Osahen Afenyo-Markin: Mr Speaker, will the Backbenchers listen to Leadership?

Mr First Deputy Speaker: Yes, Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, there is a reason you are called 'Father', and you are our father, once you resume that Chair.

So, Mr Speaker, please bear with us. You know, in this Chamber, you specialise in the rules. When you came in

2013, your main work in this Chamber was known for your industry when it comes to the rules. So, the extent of knowledge and understanding you have when it comes to rules, Mr Speaker, at the risk of saying it is unmatched, I must say that not many people may have that. So, sometimes when these things come up, it is not to undermine or to upset you. But you bear with us. We are your children. You know, there was a prophecy, and I know that prophecy will come to pass someday.

5:54 p.m.

Let it be that when that day comes, all your children will say "father oo father".

Mr Speaker, I beg of you. Our Hon Colleague had come to me earlier to raise the issue, and I said that he should seek your guidance. Perhaps, he should have maybe done a backdoor engagement before speaking to *Hansard*. However, he meant well. He had actually come to me reading the memorandum accompanying the Bill, and raised that technical concern. Mr Speaker, I think it is more about the approach.

But, Mr Speaker, you also know that sometimes in equity, form gives way to substance. He is sorry if he created that impression. But, Rev Ntim Fordjour will never disrespect you. He will never do that.

So, please, Mr Speaker.

Mr First Deputy Speaker: Hon Minority Leader, I do not know how the Chamber was created. When we are

sitting here and people speak, we hear. So, when I heard it, advisedly, I said he could come and seek my guidance outside. This is because when we debate the principle accompanying a Bill at the Second Reading and the Bill has passed that stage to a Consideration Stage, we do not raise any issue about the principle. It is not done. I would have taken it lightly if it were a Backbencher. But he is a Senior in the House. Advisedly, when I was telling him to come and engage me outside, he would have taken the cue. I even went further to say that if what he was going to raise is a matter that ought to have been considered at Second Reading, then I do not urge him to raise it.

Where on earth, in which democracy, will we pass through a Second Reading stage of a Bill, yet there will be guidance seeking on the principles accompanying the Bill? Hon Members, let us all do the right thing, and let us take a cue where we are supposed to take a cue. For me, I can be undermined, but posterity will be the judge.

Yes, let me hear you, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, it is our duty to help you maintain order in this House. The Minority Leader is called to order sometimes, and the Majority Leader is sometimes also called to order. As for the Whips, we get it often. I am worried that—*[Interruption]*—No, we must call attention to it. This is not the first time. The Hon Ntim Fordjour could not have left the Chamber throwing his arm towards Mr Speaker and walking out.

Osahen Afenyo-Markin — *rose* —

Rev Fordjour — *rose* —

Mr Dafeamekpor: He cannot do that. This is not the first time. He cannot do that. The cameras will bear us out. He cannot be leaving the Chamber and throwing his left arm at Mr Speaker *[Uproar]*. Mr Speaker presiding is the Speaker presiding. He left the Chamber and came back to gather his books. It is unacceptable. It is a disorderly conduct. We must call him to order. It is not the first time, and it is not right. I will leave it here, but it is improper.

Mr First Deputy Speaker: Hon Majority Chief Whip, it has been said that to err is human and to forgive is divine. Sometimes, I believe strongly that to forgive can be diabolical. But in the circumstances, I will just let it go and then we make progress. So, let us make progress.

Mr Dafeamekpor: Mr Speaker, in the circumstances, we pray that we call Motion numbered 21. Mr Speaker has pronounced on the matter.

Mr First Deputy Speaker: Yes?

Osahen Afenyo-Markin: Yes, indeed, he has made a general pronouncement to end the matter. But Mr Speaker, this is a House of records. My Hon Colleague did not leave the Chamber throwing up his hands in disrespect.

Some Hon Members: Eii!

Mr First Deputy Speaker: Hon Minority Leader, I beg you, do not go there for us to ask that the video be shown. So, please, let us end it here.

Osahen Afenyo-Markin: Mr Speaker, let me finish. You have spoken. You always call on others to listen to you in silence. Mr Speaker, the Hon Colleague left and engaged the Chair of the Committee on Security and Intelligence.

Mr First Deputy Speaker: Hon Member wait. Let us bring the Consideration Stage to an end so that the Mace can be tilted. For now, we have come to the end of the Consideration Stage of the Security and Intelligence Bill, 2025. So, Marshal, please—

Osahen Afenyo-Markin: Mr Speaker, the Chief Whip of the Majority Caucus is moving this House to consider the Motion numbered 21. I must draw his attention to the absence of the Attorney-General and Minister for Justice as well as his Deputy. This is a new legislation that deals with professional legal education. Mr Speaker, the Minister or his Deputy should be here. I would therefore humbly pray that we suspend proceedings on this, look at other items that we had agreed upon at Conclave and deal with them while he makes the effort to call either the Attorney-General and Minister for Justice or his able Deputy to come in here. Mr Speaker, this is because he must give direction when it comes to the principles and the policy rationale on this Bill. In his absence, we cannot make any serious progress on this, Mr Speaker.

We all know that the practice has always been that when such Bills are being considered, the sector minister and, for that matter, in parliamentary language, the sponsor of the Bill must be present to guide, to lead and to be part of the entire process.

Mr Speaker, I rest my case.

Mr First Deputy Speaker: Yes, let me hear from the Majority Chief Whip.

Mr Dafeamekpor: Mr Speaker, first of all, there is no requirement that, at the Consideration Stage, the Minister must be here before consideration can be had on the Bill. It is a protocol we have followed. That is why, in the absence of the Minister or the Sponsor of the Bill, the main Sponsor, the Deputy Minister is often admitted to participate in the consideration.

6:04 p.m.

I would have agreed with him if we were debating the principles, but we have moved long past that. Mr Speaker, in any case, I have reached out to the Hon Attorney-General and Minister for Justice. He has indicated that he will join us in no time. Yesterday, we did it and he joined us for some time and left, and we continued.

Mr Speaker, I want to plead with the Minority Leader to disengage and to let us proceed. The Hon Attorney-General and Minister for Justice will join us. The Chairperson of the Committee and his able Vice-Chairperson are ready. The Committee Members are here and

Members of the House are also here. Both Sides are ready to do this. So, I want to urge the Minority Leader to drop his point of litigation so that we can make progress in this matter.

Osahen Afenyo-Markin: Mr Speaker, according to the Majority Chief Whip, there is no such requirement for a sponsor of a Bill to lead the enactment process. Again, he argues that there is no such requirement for the Sponsor of a Bill to be part of the Consideration Stage, and that their absence thereto is inconsequential. That is what he is telling this House.

Mr Speaker, I do not want to be part of such a bad precedence, and this Side of the House will not be part of such precedence. We have a sector Minister. This is not a Bill that is coming for a mere amendment of two or three clauses. It is a new Bill introducing a new concept for professional legal education. All that the Majority Chief Whip has to say to us is that there is no such law, and he has sighted some Members. He should read the rules about when a Bill is introduced.

If we read the provisions in our Standing Orders, right from the start of the Bill being introduced, the name of the sponsor is mentioned. "The sponsor", "the sponsor shall"; who is the sponsor? There is no need to repeat the sponsor at the Consideration Stage, because by parity of reasoning, we look at the mention of the phrase in other provisions, conjoin and give it effect. So, what is the Majority Chief Whip trying to say? We need the Minister or his Deputy to be here. He must be here.

Mr Speaker, there is no rush. If he himself says he has called him, he should tell us where the Hon Minister is. If he will be able to come, we should know. It is past six o'clock and we have other Businesses. I think I have seen my Colleagues on the Committee on Energy who told me that they have a Motion. Their Report was distributed yesterday or so. If we are ready, we can look at it whilst waiting for the Hon Attorney-General and Minister for Justice.

Mr Speaker, the Hon Attorney-General and Minister for Justice must find time for Parliament, especially when this Bill is his.

Mr First Deputy Speaker: Hon Minority Leader, with all due respect, Parliament is a place of record. The records of this House will show that, when in Minority, I have ever shepherded a Bill by moving an amendment as a Member in the Minority without the presence of the Minister and the Chairperson of the Committee. So, this is not the first time a Bill will be considered when the sponsor or the Hon Minister is not in the Chamber.

The record will bear me out that, again, we have shepherded a Bill throughout the Consideration Stage without a Minister. When we got to the Third Reading, the Minister that, owing to the volume of amendments to the Bill, she is not coming to move the Third Reading of the Bill. But this House agreed with the then-Majority Leader that he should go ahead and move the Motion for the Third Reading of the Bill. That has been done.

So, for me, it will be novel to say that, because the Hon Minister is not in the Chamber, Parliament, seized with the jurisdiction to consider the Bill, will not do so, so that parliamentary work regarding passage of laws should be at the behest of the Minister. When the Minister decides not to come, then it means that the work of Parliament must stall.

With all due respect, by practice, we are masters of our own rules. I have seen it happen severally in this House, and I am a test case in moving an amendment as a Ranking Member in the absence of the Chairperson and the Vice-Chairperson of the Committee. I did that because the passage of law has no respect for a political party. The law governs the entire nation.

If this Bill is not passed timeously, in the academic year, our children will have to go through the process of writing examination in order to enter the law school and there will be a backlog of cases. This Bill is providing a mechanism that a person will do it then write the bar exams. So, it is in the interest of the public to do this, but not to tie it down to a Minister.

Mr Dafeamekpor: Mr Speaker, if I may assist the House further. Order 169(1) is to this effect, with your leave:

“When a Bill has been read a Second Time, the Bill shall pass through a Consideration Stage in the House which shall ordinarily not be taken until at least two sitting days have elapsed.”

Mr Speaker, rule 3 of Order 169 is to this effect:

At the Consideration Stage,

- (a) the Mace shall stand tilted before the Table, and a Member may speak more than once to any Question proposed.
- (b) a Member may sit at any seat convenient for the purpose of participating in the Consideration Stage.
- (c) the House may effect such amendments as the House considers necessary, except that the amendments including new clauses and new schedules shall comply with the following.
 - (i) the amendment must be relevant to the subject matter of the clause to which the amendment relates;
 - (ii) the amendment must not be inconsistent with any clause already agreed to or any decision already taken by the House; and
 - (iii) the amendment, if not intelligible without a subsequent amendment, notice of the subsequent amendment ...

So, Mr Speaker, there is no requirement, it is just by practice. So, for the Minority Leader to insist that until the sector Minister is here, Business cannot be conducted at the Consideration

Stage, is actually in breach of the law of our procedure. He must desist from his insistence, because his insistence is not borne out by the rules.

Mr First Deputy Speaker: No, he is not insisting, he is amenable. Minority Leader, you are amenable.

Mr Dafeamekpor: Mr Speaker, I am guided.

Osahen Afenyo-Markin: Mr Speaker, you put it right and I appreciate that. Let the records reflect this, that if indeed this Bill has any urgency, then it is expected that the Hon Attorney-General and Minister for Justice must give it attention by being in this Chamber.

6:14 p.m.

It is not as if the argument is that in the absence of the Attorney-General and Minister for Justice, Parliament cannot do its work. That is not what I am saying. What I am saying is the Attorney-General, being the Sponsor of the Bill, must be here to shepherd the process.

Mr Speaker, he is the Sponsor, and he knows the urgency of it. If our school children need to write entrance examinations and they have to go to a law school and all that, he knows this. He has to be here to see to the quorum and all. He has to be here to guide the process, enrich knowledge, and appreciate industry, but he is not here. So, Mr Speaker, it would also be a bad practice to say that at the Consideration Stage, the law does not specifically

mention Sponsor. But what the Majority Chief Whip conveniently forgot, emphasis on conveniently forgot, is that in reading a piece of legislation, we do not read it in isolation, disintegrate the law, and give meanings of convenience to the law.

The purposive approach interpretation, as taught to us, did not say to read the law in isolation. Mr Speaker, he and I passed our examination, we were called to the Bar, we were taught how to interpret, and read the law. Mr Speaker, if you go to Order 160, it makes reference to a Sponsor; it deals with Bills. It talks about the process of introducing the Bill and makes reference to Sponsor. Once that has been introduced, there is no need to again mention it in Order 169. Because there is a fundamental position that has already been taken. Mentioning a Sponsor at Order 160 is fundamental.

Mr Speaker, if the Majority Chief Whip wants to litigate, there will be litigation. But if he would follow the path that you have introduced, we will make progress. Go and bring the Attorney-General!

Mr First Deputy Speaker: Hon Minority Leader, I beg to differ. I indicated that Parliament is a place of record. Whatever we do is recorded by the *Hansard*, and for you and I, with our position, we need to adhere to the law. Order 160 that you referred to reads:

“A Sponsor may submit a Bill to Parliament without publication in the Gazette where the sponsor of

the Bill considers the Bill to be of an urgent nature.”

Until a Bill is introduced in Parliament, it is not the Business of the House, so it is the Business of that Sponsor. But as soon as the Bill is introduced in Parliament, then Parliament is seized with the jurisdiction to deal with the Bill. So, before the introduction of the Bill, the rules could not refer to any other person but the Sponsor. So rightly, in Order 160, the use of the Sponsor is right. But that does not suggest that after the introduction of the Bill, particularly at the Consideration Stage, the sponsor must be present at the time that the Bill is being considered.

I asked myself, in the Eighth Parliament, what happened? Before, I was moving amendments to pass laws in the interest of mother Ghana, in the absence of the ministers, the Chairperson, and the Vice-Chairperson of the Committee. So, it is the same law that we are making in the interest of Mother Ghana. With the same spirit, we can even get a Member from the Minority to be proposing the amendments.

Osahen Afenyo-Markin: Mr Speaker, you are right that at the Consideration Stage, there is no mention of the Sponsor. But what I did was to invoke the rule of prudence. Mr Speaker, it is one of the rules in equity, and we invoke them in a parliamentary jurisprudence, the nature of which we find ourselves in, to argue that it would be prudent to have the Attorney-General and Minister for Justice in the Chamber

to guide and shepherd the process, although Order 169 does not expressly provide for same.

Mr Speaker, procedure and prudence, when they clash, procedure gives way to prudence. We know this. So, I agree that, though procedurally, there is no such provision—and I am not going to contest that when my very learned Senior, the First Deputy Speaker, has made that clear. I am not going to contest that. However, some other overriding rules overreach that. I submit that to the extent that we can argue prudence, the non-availability of express provision can be overreached by invoking prudence. Because it is the Attorney-General’s responsibility to be in this Chamber. Mr Speaker, the Attorney-General has a *bona fide* duty to be in this Chamber in respect of this Bill.

The Majority Chief Whip himself says that the Attorney-General was called. He does not tell us what the Attorney-General is doing outside of this Parliament, or what is preventing the A-G from coming here. Whether he is holding a press conference or doing something somewhere, we do not know.

Mr Speaker, I would rest my case.

Mr First Deputy Speaker: But I also want us to look at the argument in line with Article 93(2) of the 1992 Constitution, which vests the legislative power in Parliament, but not in any Minister. Article 93 (2) read:

“Subject to the provisions of this Constitution, the legislative power

of Ghana shall be vested in Parliament and shall be exercised in accordance with this Constitution.”

It has never vested the legislative power in any Minister, but it is vested in Parliament. This is Parliament to do Consideration of a Bill. So, no jurisprudence can oust this power. We should be careful not to place our legislative power to make laws at the instance of any Minister. It would have been a very bad precedent.

So, Hon Members, the Legal Education—

Osahen Afenyo-Markin: Mr Speaker, I will plead with you, let us have just five minutes suspension and consult. [Some Hon Members: No.] It is for a good reason; just five minutes suspension, not more. Let us engage and come back.

Mr First Deputy Speaker: Hon Members, if the Leaders want to engage, I have no option. So, I will grant exactly five minutes’ suspension to enable the Leaders to engage.

6:25 p.m. — *Sitting suspended.*

6:38 p.m. — *Sitting resumed.*

[MR FIRST DEPUTY SPEAKER]

Hon Members, welcome back. Kindly resume your seats.

Hon Members, Legal Education Reform Bill, 2025 under consideration.

BILL — CONSIDERATION STAGE

Legal Education Reform Bill, 2025

[Resumption of Consideration from 17/02/2026]

Mr First Deputy Speaker: Hon Members, I understand we considered up to clause 27, and I believe the Question was put on clause 27. So, we now move to clause 28.

Clause 28 — Consideration of application for full accreditation licence.

Mr First Deputy Speaker: Chairperson of the Committee?

Chairperson of the Committee (Mr Shaibu Mahama): Mr Speaker, clause 28, amendment proposed. Paragraph (a), *delete* and *insert* the following:

“A university that is issued with an accreditation licence, shall:

(a) display the licence:

(i) conspicuously in the registered office of the university, preferably in the facility where the university runs a law degree programme of the university; and

(ii) on the website of the university”.

I so move, Mr Speaker.

Mr First Deputy Speaker: Hon Members, the proposed amendment is for the consideration of the House.

Question put and amendment agreed to.

Clause 28, as amended, is ordered to stand part of the Bill.

Clause 29 — Issue of full accreditation licence.

Mr First Deputy Speaker: Yes, Chairperson of the Committee?

Mr Shaibu Mahama: Mr Speaker, amendment proposed. *Add* the following new paragraph:

“on the website of the Council”

And the new rendition will be:

“The Council shall, within 14 days after issuing an accreditation licence, publish the name of the licence:

- (a) in the Gazette;
- (b) in at least one daily newspaper of nationwide circulation; and
- (c) on the website of the Council.”

I so move, Mr Speaker.

Mr First Deputy Speaker: Hon Members, it is for the consideration of the House. I will put a Question to the amendment by the Chairperson.

Osahen Afenyo-Markin — *rose* —

Mr First Deputy Speaker: Yes, Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, with respect, we seem to have so many documents. Which of them are we pursuing? Because we have 20—It was a subtitle.

Mr First Deputy Speaker: So, Hon Chairperson, because the Winnowing Committee has worked on the Bill, indicate the clause by the old rendition and the one done by the Winnowing Committee so that Hon Members can follow it.

Mr Shaibu Mahama: Very well, Mr Speaker.

Mr Speaker, clause 29 on the *Order Paper*, that is, Publication of Accreditation Licence. And that is also 29 on the original Legal Education Reform Bill, 2025. What we have today, the numbering here matches with the original Bill. Then the corresponding number in the winnowed document for clause 29 is actually 31, Publication of Accreditation Licence. So, I would accordingly, per the directive of Mr Speaker, mention the two as we move.

Osahen Afenyo-Markin: Mr Speaker, with respect, from what the Chairperson of the Committee just said, I want to know from him, because I have the two documents; I have the Publication of accreditation licence as 29 and I have Publication of accreditation licence as 31. I also have that. Now, the amendment you are effecting now is with respect of the 31 being the winnowed document. *[Interruption]* That is what I am saying. That one has (a), (b) and (c), which is “on the website of the Council”,

the new sub-clause that has been introduced. Right.

Mr Speaker, I think we are on the same path now.

Mr First Deputy Speaker: So, the (c) is the additional provision that is being added, but it has been integrated into the document of the Winnowing Committee. We are giving ourselves this particular trouble because for me, once the Winnowing Committee has agreed, what Members should be proposing the amendment to is what the Winnowing Committee has brought to us.

So, this confusion would not have been there.

Mr Dafeamekpor: Mr Speaker, we are guided.

Osahen Afenyo-Markin: Yesterday, there was an issue that Hon Kyei Asamoah is just bringing to my attention. I think — *[Interruption]*. No, we dealt with that. We agreed to do one year. But if you read clause 28, it says:

“The Council shall on receipt of an application for full accreditation licence, constitute a committee”.

Yesterday, we had introduced an accreditation committee of Council in clause 25, and, Mr Speaker, that should be consequential.

Mr First Deputy Speaker: So, Hon Minority Leader, you know what we can

do? Let me put the Question on the amendment by the Chairperson of the Committee, so that before I put a Question on the entire clause 29, which is clause 31 of the document from the Winnowing Committee, then a Member can propose an amendment.

Question put and amendment agreed to.

Mr First Deputy Speaker: Now, the Question to the entire clause 29. If there is any amendment, I will take it at this level.

Yes, Hon Kyei Asamoah?

Dr Fred Kyei Asamoah: Thank you very much, Mr Speaker.

Pursuant to prior amendment, I would like to propose amendment to clause 28, which was not taken yesterday. I would like to propose that we *delete* “constitute a committee” on line 2 of clause 28(1) and *insert* to read that, “the Council shall, on receipt of an...”

Mr First Deputy Speaker: Are you taking me back to clause 28?

Dr F. K. Asamoah: Because we did not—*[Interruption]*.

Mr First Deputy Speaker: No, I have already put the Question on clause 28. We are now taking amendment on clause 29. So, if there is no amendment to clause 29, then I have to put a Question on the entire clause 29.

6:48 p.m.

Hon Members, I maintain that as for Parliament, we are in a learning curve. If a Question has been put on a clause and you want to go back to that particular clause, you can only do so by the leave of the Speaker, it is not automatic so kindly take note.

So, can I put a Question on the entire 29 or there is an amendment to 29?

Mr Dafeamekpor: Mr Speaker, you may put the Question on clause 29 as advertised.

Question put and amendment agreed to.

Clause 29 ordered to stand part of the Bill.

Osahen Afenyo-Markin: Mr Speaker, may I now pray for your leave to enable my Colleague, Hon Asamoah, to proceed to the clause 28 on the winnowed document which is dealing with a consequential matter. We had already amended clause 25 and introduced an accreditation committee of the Council so it is just consequential to do that.

Mr First Deputy Speaker: Well, I did not preside over clause 25, but I am reliably informed by the Clerk that amendment to clause 25 was not taken by the *Votes and Proceedings*. It is supposed to be deleted.

Osahen Afenyo-Markin: Mr Speaker, not to refer to the particular clause 25, but we had done an amendment. I just do not want us to bring any controversy because time is far spent. We have done an amendment where the Committee to be established for the purposes of considering the application had been amended with a new phrase, that is accreditation committee of the Council. So, that is clause 22 as captured in the *Votes and Proceedings*. So, this one is just consequential. So, what Hon Asamoah is proposing is that since it is the same duty or mandate—

Mr First Deputy Speaker: So, I intend to direct the drafters to carry out all the consequential amendments. The drafters are hereby accordingly directed to carry out all the consequential amendments.

Osahen Afenyo-Markin: Mr Speaker, it is so but there is one more phrase to transmit. Let him do the full rendition so that the draftsman can listen to it and capture it accordingly.

Mr First Deputy Speaker: Are you not saying that it is consequential to clause 22.

Osahen Afenyo-Markin: Yes, but there is further amendment which I would like you to listen to the full rendition. Thank you.

Mr First Deputy Speaker: Very well.

So, first take me to the clause you are amending since we have passed that stage.

Dr Asamoah: Mr Speaker, so clause 28(1) should read:

“The Council shall, on receipt of an application for a full accreditation licence, transmit it to the Accreditation Committee to conduct an evaluation of the university that seeks to offer or provide law practice training.”

Osahen Afenyo-Markin: Mr Speaker, it is the right approach because when the application is received, it has to be transmitted to the committee. We defined the committee here in clause 22 as the accreditation committee of the Council so it is nothing new. All that our Colleague is now adding is the “transmit” and deleting “constitute” because “constitute” has already been established under clause 22.

Mr First Deputy Speaker: So, the rendition says that:

“The Council shall, on receipt of an application for a full accreditation licence, constitute a committee...”

Osahen Afenyo-Markin: Mr Speaker, so now the new rendition will be:

“The Council shall, on receipt of an application for a full accreditation, transmit it to the accreditation committee of Council.”

Mr First Deputy Speaker: I do not know the impulse of the amendment carried there but my understanding here is consideration of application for full accreditation. And he is saying that the Council shall, on receipt of an application, constitute a committee. Are we saying automatically this committee should be an accreditation?

Osahen Afenyo-Markin: Mr Speaker, that was a consensus reached with the Attorney-General and Minister for Justice, Majority Leader and all of us yesterday that we should now define it so that it would not be an ad hoc committee but rather a Standing Committee defined and that Standing Committee is the accreditation committee which must take its powers from Council.

Mr First Deputy Speaker: So, the direction I have given to the drafters to carry it consequentially still stands.

Osahen Afenyo-Markin: So, Mr Speaker, let us get the full rendition right.

“The Council shall, on receipt of an application for a full accreditation, transmit the application to the accreditation committee of Council to conduct an evaluation of the university that seeks to offer or provide Law Practice Training.”

Mr First Deputy Speaker: So, by your amendment, you are deleting the licence. Because it says a full accreditation licence. I thought you are only—

Osahen Afenyo-Markin: Mr Speaker, it is included.

Mr First Deputy Speaker: But your rendition does not include it.

Osahen Afenyo-Markin: Mr Speaker, I erred. You have got it.

Mr First Deputy Speaker: Very well. So, you are deleting “constitute a committee” to substitute it with “accreditation committee”.

Osahen Afenyo-Markin: Yes, that is so. Accreditation committee of Council. That was what we agreed on.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, the standard phrase we use in this House is “refer”, so instead of “transmit”, Dr Asamoah could use “refer”.

Mr First Deputy Speaker: So, the rendition will be the Council shall on receipt of an application for a full accreditation licence, refer the application to the accreditation committee to conduct an evaluation?

Dr Asamoah: Yes, Mr Speaker.

Question put and amendment agreed to.

Clause 28 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: We did clause 29. So, we will now move to

clause 30. There is no advertised amendment on clause 30 to 33. There is no advertised amendment on clause 30.

6:58 p.m.

Chairperson of the Committee, any proposed amendment to clause 30?

Mr S. Mahama: Mr Speaker, we will also need a consequential amendment to clause 28(2)(b).

Mr First Deputy Speaker: Chairperson of the Committee, I always admonish that for the purposes of the journal, you move the amendment. We have given this trouble to ourselves by way of defeating the purpose of winnowing. If a Bill is referred to a Winnowing Committee and the Committee has worked on the Bill and it came out in this form by integrating the agreed amendment as proposed, and we are now moving those agreed amendments on the Floor again, then we are just giving ourselves a problem.

Mr S. Mahama: Mr Speaker, this is different. It is because we changed —

Mr First Deputy Speaker: No, I am talking about moving the 72 amendments in the *Order Paper*.

Mr S. Mahama: I appreciate that, but Mr Speaker, would you just let us take this?

Mr First Deputy Speaker: Yes.

Mr S. Mahama: Mr Speaker, clause 28(2) says “the Committee constituted

under subsection (1) ...”. We do not have a Committee constituted under subsection (1), that is what I want to advert your mind to, Mr Speaker.

Mr First Deputy Speaker: Yes, so you can move that amendment.

Mr Dafeamekpor: Indeed, we have directed the draftsman to tidy it up, so I believe that they will.

Clauses 30 and 31 are ordered to stand part of the Bill

Mr Dafeamekpor: Mr Speaker, the mood of the House is that we draw down the curtains on the Consideration Stage and continue tomorrow.

Mr First Deputy Speaker: Very well. We have come to the end of the Consideration Stage of today.

So, please, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, it is exactly 7:00 p.m., but we did not start exactly at 2 p.m. So, we have not done five hours.

Mr Speaker, on that note, I move that in the absence of any further Business, we adjourn until tomorrow at 2:00 p.m. to continue Business.

Mr Speaker, I so move.

Mr First Deputy Speaker: Motion moved, any seconder?

Osahen Afenyo-Markin: Mr Speaker, today, nature has positively given to humanity every blessing humanity can wish for. Today begins the Lent, and we are also having the Ramadan. It is rare for humanity to get these two energies, all coming from the realm. We must take advantage of this and pray for every blessing. The energies of today are very unusual. These are very positive energies; Muslims are praying and Christians are praying. It is a day of a lot of good tidings.

So, Mr Speaker, we should take advantage and rededicate ourselves and pray that things would go well for our country, Ghana, because the blessings are so overwhelming, we should tap into the energy, and I am sure God will not let us down.

Mr Speaker, that said, I want to second the Motion moved by the Majority Chief Whip for us to adjourn proceedings until tomorrow, 2:00 p.m.

Mr Speaker, next time, he should add that to his application.

Question put and Motion agreed to.

ADJOURNMENT

The House was accordingly adjourned at 7:06 p.m. till Thursday, 19th February, 2026, at 2:00 p.m.

Editor's Note

This *Official Report* was adopted by the House on 26th February, 2026.